

HOUSE BILL No. 1343

DIGEST OF INTRODUCED BILL

Citations Affected: IC 1-1-4-5; IC 4-13-16.5-1; IC 4-15-2.2-32; IC 5-2; IC 5-9-3; IC 5-10.3-7-5; IC 5-10.4-4-8; IC 6-8.1-9-4; IC 9-18.5-7-3; IC 10-13-8-5; IC 10-16; IC 10-17; IC 10-18-1-2; IC 14-15; IC 16-33-4-7; IC 20-20-7; IC 21-12-13-2; IC 22-4.1-4-3.3; IC 25-8-12.1-12; IC 25-10-1-7; IC 25-25-2-1; IC 25-37-1-14; IC 34-13-3-3; IC 34-30; IC 35-31.5-2-185; IC 36-1-8.5-4; IC 36-8.

Synopsis: Military and veteran matters. Requires certain water vessels to include an engine cut-off switch. Provides that a sailing vessel at least seven meters in length must comply with federal regulations. Makes changes to the employment eligibility requirements for employees of the Indiana department of veterans' affairs (department). Makes changes to the purpose of the military family relief fund (fund). Provides that the department shall report to the Indiana veterans' affairs commission (commission), at least quarterly, as to the status of all applications regarding assistance from the fund during the previous quarter. Adds provisions indicating who is eligible for a grant from the fund. Provides that the department shall make a comprehensive assessment of an applicant's financial condition and needs when making a determination regarding an award from the fund. Provides that an applicant may not be eligible for assistance from the fund if the applicant's federal gross income, or the combined federal gross income of the applicant and the applicant's spouse, exceeds two times the poverty guideline unless the commission approves an income waiver. Provides that an applicant must establish that the applicant has incurred a genuine hardship to be eligible to receive assistance from the fund. Provides that the department or commission may impose stipulations or conditions concerning an applicant seeking an award from the fund.

(Continued next page)

Effective: July 1, 2026.

Bartels

January 6, 2026, read first time and referred to Committee on Veterans Affairs and Public Safety.



Makes changes to the subject matter that must be included in administrative rules established by the commission. Makes certain changes relating to the review of grants from the fund to employees of the department. Provides that an applicant may appeal a denied request for short term financial assistance from the fund. Authorizes the adjutant general of the Indiana National Guard (adjutant general) to establish a military police force of the Indiana National Guard. Provides that a member of the military police force of the Indiana National Guard has police powers: (1) when the member is called to state active duty; and (2) if the individual successfully completes either army or air military police occupational training and receives qualifying instruction on Indiana law enforcement prescribed by the adjutant general. Makes changes to the authorized duties and responsibilities of the adjutant general in which the state armory board (board) may make contributions. Provides that the board may utilize any and all appropriate methods to lease or purchase real estate. Provides that an armory may not be erected on land that is leased for less than 25 years. (Current law provides that an armory may not be erected on land that is leased for less than 50 years.) Provides that the board may adopt policies or procedures for the use and governance of armories. (Current law authorizes the board to adopt rules for the use and governance of armories.) Specifies the types of donated property that the board may reconvey if the board determines that the property is no longer usable. Provides that if the board receives from the adjutant general information of the disbandment of the organization of the armed forces of Indiana occupying and using an armory, the board shall take charge of the armory. Makes various changes to provisions relating to the sale of property owned by the board. Establishes the Indiana civilian cyber corps program (program) as a subdivision of the Indiana guard reserve. Provides that the program includes civilian volunteers who have expertise in addressing cybersecurity incidents and who volunteer at the invitation of the adjutant general. Provides that the work product of a civilian cyber corps volunteer or adviser, including any information voluntarily submitted to the volunteer or adviser, is exempt from disclosure. Provides that a civilian cyber corps volunteer or adviser is immune from tort liability for an injury to a person or damage to property that occurs while the volunteer or adviser is deployed and acting on behalf of the adjutant general if certain conditions are met. Provides that the adjutant general may appoint additional general officers. (Current law authorizes the appointment of assistant adjutants general.) Changes the definitions of "veteran" for purposes of provisions relating to: (1) the governor's commission on supplier diversity; (2) the state civil service system; and (3) authorizing preference points for the appointment of veterans. Removes a requirement that the national guard tuition supplement grant must be used within eight years after the date the individual first applies and becomes eligible for benefits. Repeals: (1) the Indiana cyber civilian corps program advisory board; (2) a provision relating to contracts to use Stout Field as a commercial runway; (3) a definition of "qualified service member"; (4) a provision requiring a muffler or underwater exhaust for a boat; and (5) a provision prohibiting the use of a boat motor equipped with a muffler cutout or bypass. Makes technical corrections and conforming amendments.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1343

A BILL FOR AN ACT to amend the Indiana Code concerning public safety.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 1-1-4-5, AS AMENDED BY P.L.238-2025,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 5. (a) The following definitions apply to the
4 construction of all Indiana statutes, unless the construction is plainly
5 repugnant to the intent of the general assembly or of the context of the
6 statute:
7 (1) "Adult", "of full age", and "person in his majority" mean a
8 person at least eighteen (18) years of age.
9 (2) "Attorney" includes a counselor or other person authorized to
10 appear and represent a party in an action or special proceeding.
11 (3) "Autism" means a neurological condition as described in the
12 most recent edition of the Diagnostic and Statistical Manual of
13 Mental Disorders of the American Psychiatric Association.
14 (4) "Bond" does not necessarily imply a seal.
15 (5) "Clerk" means the clerk of the court or a person authorized to



- 1 perform the clerk's duties.
- 2 (6) "Health record", "hospital record", or "medical record" means
- 3 written or printed information possessed by a provider (as defined
- 4 in IC 16-18-2-295) concerning any diagnosis, treatment, or
- 5 prognosis of the patient, unless otherwise defined. Except as
- 6 otherwise provided, the terms include mental health records and
- 7 drug and alcohol abuse records.
- 8 (7) "Highway" includes county bridges and state and county
- 9 roads, unless otherwise expressly provided.
- 10 (8) "Infant" or "minor" means a person less than eighteen (18)
- 11 years of age.
- 12 (9) "Inhabitant" may be construed to mean a resident in any place.
- 13 (10) "Judgment" means all final orders, decrees, and
- 14 determinations in an action and all orders upon which executions
- 15 may issue.
- 16 (11) "Land", "real estate", and "real property" include lands,
- 17 tenements, and hereditaments.
- 18 (12) "Mentally incompetent" means of unsound mind.
- 19 (13) "Money demands on contract", when used in reference to an
- 20 action, means an action arising out of contract when the relief
- 21 demanded is a recovery of money.
- 22 (14) "Month" means a calendar month, unless otherwise
- 23 expressed.
- 24 (15) "Noncode statute" means a statute that is not codified as part
- 25 of the Indiana Code.
- 26 (16) "Oath" includes "affirmation", and "to swear" includes to
- 27 "affirm".
- 28 (17) "Person" extends to bodies politic and corporate.
- 29 (18) "Personal property" includes goods, chattels, evidences of
- 30 debt, and things in action.
- 31 (19) "Population" has the meaning set forth in IC 1-1-3.5-3.
- 32 (20) "Preceding" and "following", referring to sections in statutes,
- 33 mean the sections next preceding or next following that in which
- 34 the words occur, unless some other section is designated.
- 35 (21) "Property" includes personal and real property.
- 36 (22) "Sheriff" means the sheriff of the county or another person
- 37 authorized to perform sheriff's duties.
- 38 (23) "State", applied to any one (1) of the United States, includes
- 39 the District of Columbia and the commonwealths, possessions,
- 40 states in free association with the United States, and the
- 41 territories. "United States" includes the District of Columbia and
- 42 the commonwealths, possessions, states in free association with



the United States, and the territories.

(24) "Under legal disabilities" includes persons less than eighteen (18) years of age, mentally incompetent, or out of the United States.

(25) "Verified", when applied to pleadings, means supported by oath or affirmation in writing.

(26) "Will" includes a testament and codicil.

(27) "Without relief" in any judgment, contract, execution, or other instrument of writing or record, means without the benefit of valuation laws.

(28) "Written" and "in writing" include printing, lithographing, or other mode of representing words and letters. If the written signature of a person is required, the terms mean the proper handwriting of the person or the person's mark.

(29) "Year" means a calendar year, unless otherwise expressed.

(30) The definitions in IC 35-31.5 apply to all statutes relating to penal offenses.

(b) This subsection applies to the definitions of "Hoosier veteran" and "veteran" when used in reference to state programs for veterans. The term "veteran" includes "Hoosier veteran", and applies to the construction of all Indiana statutes, unless the construction is expressly excluded by the terms of the statute, is plainly repugnant to the intent of the general assembly or of the context of the statute, or is inconsistent with federal law. "Hoosier veteran" means an individual who meets the following criteria:

(1) The individual is a resident of Indiana.

(2) The individual served in an active or reserve component of the armed forces of the United States or the Indiana National Guard.

(3) The individual completed any required military occupational specialty training and was not discharged or separated from the armed forces or the Indiana National Guard under conditions ~~other than conditions set forth in IC 10-17-12-7.5(2).~~

IC 10-17-12-8.1(2).

The definitions set forth in this subsection may not be construed to affect a Hoosier veteran's eligibility for any state program that is based upon a particular aspect of the Hoosier veteran's service such as a disability or a wartime service requirement.

SECTION 2. IC 4-13-16.5-1, AS AMENDED BY P.L.238-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The definitions in this section apply throughout this chapter.

(b) "Commission" refers to the governor's commission on supplier



diversity established under section 2 of this chapter.

(c) "Commissioner" refers to the commissioner of the department.

(d) "Contract" means any contract awarded by a state agency or, as set forth in section 2(g)(11) of this chapter, awarded by a recipient of state grant funds, for construction projects or the procurement of goods or services, including professional services. For purposes of this subsection, "goods or services" may not include the following when determining the total value of contracts for state agencies:

(1) Utilities.

(2) Health care services (as defined in IC 27-8-11-1(c)).

(3) Rent paid for real property or payments constituting the price of an interest in real property as a result of a real estate transaction.

(e) "Contractor" means a person or entity that:

(1) contracts with a state agency; or

(2) as set forth in section 2(g)(11) of this chapter:

(A) is a recipient of state grant funds; and

(B) enters into a contract:

(i) with a person or entity other than a state agency; and

(ii) that is paid for in whole or in part with the state grant funds.

(f) "Department" refers to the Indiana department of administration established by IC 4-13-1-2.

(g) "Deputy commissioner" refers to the deputy commissioner for supplier diversity of the department.

(h) "Minority business enterprise" or "minority business" means an individual, partnership, corporation, limited liability company, or joint venture of any kind that is owned and controlled by one (1) or more persons who are:

(1) United States citizens; and

(2) members of a minority group or a qualified minority nonprofit corporation.

(i) "NGB-22" means the National Guard Report of Separation form or its predecessor or successor form.

(j) "Qualified minority or women's nonprofit corporation" means a corporation that:

(1) is exempt from federal income taxation under Section 501(c)(3) of the Internal Revenue Code;

(2) is headquartered in Indiana;

(3) has been in continuous existence for at least five (5) years;

(4) has a board of directors that has been in compliance with all other requirements of this chapter for at least five (5) years;



(5) is chartered for the benefit of the minority community or women; and

(6) provides a service that will not impede competition among minority business enterprises or women's business enterprises at the time a nonprofit applies for certification as a minority business enterprise or a women's business enterprise.

(k) "Owned and controlled" means:

(1) if the business is a qualified minority nonprofit corporation, a majority of the board of directors are minority;

(2) if the business is a qualified women's nonprofit corporation, a majority of the members of the board of directors are women; or

(3) if the business is a business other than a qualified minority or women's nonprofit corporation, having:

(A) ownership of at least fifty-one percent (51%) of the enterprise, including corporate stock of a corporation;

(B) control over the management and active in the day-to-day operations of the business; and

(C) an interest in the capital, assets, and profits and losses of the business proportionate to the percentage of ownership.

(l) "Minority group" means:

(1) African Americans;

(2) Native Americans;

(3) Hispanic Americans; and

(4) Asian Americans.

(m) "Separate body corporate and politic" refers to an entity established by the general assembly as a body corporate and politic.

(n) "State agency" refers to any authority, board, branch, commission, committee, department, division, or other instrumentality of the executive, including the administrative, department of state government.

(o) "Veteran" means an individual who:

(1) has previously:

(A) served ~~on active duty~~ in any branch of the armed forces of the United States or their reserves, in the national guard, or in the Indiana National Guard; and

(B) received a discharge from service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2);~~ **IC 10-17-12-8.1(2)**; or

(2) is currently serving in:

(A) any branch of the armed forces of the United States or their reserves;

(B) the national guard; or



- 1 (C) the Indiana National Guard.
- 2 (p) "Veteran owned small business" refers to a small business that:
- 3 (1) is independently owned and operated;
- 4 (2) is not dominant in its field of operation; and
- 5 (3) satisfies the criteria to be a veteran owned small business
- 6 concern as specified in section 1.5 of this chapter.
- 7 (q) "Women's business enterprise" means a business that is one (1)
- 8 of the following:
- 9 (1) A sole proprietorship owned and controlled by a woman.
- 10 (2) A partnership or joint venture owned and controlled by
- 11 women in which:
- 12 (A) at least fifty-one percent (51%) of the ownership is held by
- 13 women; and
- 14 (B) the management and daily business operations are
- 15 controlled by at least one (1) of the women who owns the
- 16 business.
- 17 (3) A corporation or other entity:
- 18 (A) whose management and daily business operations are
- 19 controlled by at least one (1) of the women who owns the
- 20 business; and
- 21 (B) that is at least fifty-one percent (51%) owned by women,
- 22 or if stock is issued, at least fifty-one percent (51%) of the
- 23 stock is owned by at least one (1) of the women.
- 24 (4) A qualified women's nonprofit corporation.
- 25 SECTION 3. IC 4-15-2.2-32, AS AMENDED BY P.L.238-2025,
- 26 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 27 JULY 1, 2026]: Sec. 32. (a) Former members of the armed forces of the
- 28 United States who meet both of the following requirements shall
- 29 receive a preference for appointment or reemployment in the state
- 30 classified service:
- 31 (1) The veteran served ~~on active duty~~ in any branch of the armed
- 32 forces.
- 33 (2) The veteran was not discharged or separated from the armed
- 34 forces under conditions set forth in ~~IC 10-17-12-7.5(2).~~
- 35 **IC 10-17-12-8.1(2).**
- 36 (b) When:
- 37 (1) preemployment interviews of external candidates are
- 38 conducted; and
- 39 (2) the qualified applicant pool includes veterans;
- 40 veterans must be included in the group offered interviews.
- 41 (c) In computing seniority for purposes of a personnel reduction in
- 42 state civil service, the computation must include the length of time the



employee spent ~~on active duty~~ in the armed forces of the United States.

SECTION 4. IC 5-2-1-15, AS AMENDED BY P.L.173-2023, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 15. (a) The facilities of the law enforcement academy shall be available to any law enforcement agency of the state, or any of its political subdivisions, subject to the rules of the board.

(b) Any law enforcement agency of the state, any of its political subdivisions, or any board certified training center may conduct training:

(1) for the law enforcement agency of any political subdivision in Indiana; and

(2) in facilities other than those of the law enforcement academy; if the minimum standards established by the board are met or exceeded.

(c) A law enforcement agency or a board certified training center conducting approved local training under subsection (b) may be entitled to a per capita allowance from the law enforcement training fund to defray such portions of the cost of basic training as shall be approved by the board. Such per capita allowance shall be earmarked and expended only for law enforcement training.

(d) The facilities of the law enforcement academy shall be available for the training of railroad police, prison and industrial plant guards, tribal police, postsecondary educational institution safety and security personnel, whether public or private, for the training of any law enforcement agency from outside Indiana, and for the training of **members in the military police force of the Indiana National Guard under IC 10-16-23** and such other enforcement related groups as shall be approved by the board, upon terms and conditions established by the board. Railroad police, tribal police, **Indiana National Guard**, and any law enforcement agency from outside Indiana, and nongovernmental enforcement related groups qualifying to use the facilities of the academy under the rules of the board shall be required to reimburse the law enforcement training fund for the cost of such training.

(e) The facilities of the law enforcement academy may be used for the training of firefighting personnel where the subject matter of the training relates to duties which involve law enforcement related conduct. Such training shall be conducted upon terms and conditions established by the board. However, no volunteer firefighter is required to attend training at the academy.

(f) The facilities of the law enforcement academy shall be used to provide the basic training under section 9(d) of this chapter of a special officer of a consolidated city who is employed full time by the consolidated city after June 30, 2023, to perform park ranger duties.



(g) The cost of the mandatory basic training conducted by the board at the facilities of the law enforcement academy and all other training programs authorized by this chapter and conducted at the law enforcement training academy, including the mandatory basic training course when attended by trainees who have been investigated and approved but not yet hired by a law enforcement agency, are subject to fee schedules and charges for tuition, lodging, meals, instructors, training materials, and any other items or services established by the board, including amounts needed to recoup corresponding marginal and fixed costs. The costs and the fee schedule must be an annual schedule for the state fiscal year and must be approved by the budget director.

SECTION 5. IC 5-2-18.2-2, AS ADDED BY P.L.171-2011, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) As used in this chapter, "law enforcement officer" has the meaning set forth in IC 5-2-1-2.

(b) The term includes a member in the military police force of the Indiana National Guard while exercising police powers in accordance with IC 10-16-23-3.

SECTION 6. IC 5-2-20-2, AS ADDED BY P.L.171-2011, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) As used in this chapter, "law enforcement officer" has the meaning set forth in IC 5-2-1-2.

(b) The term includes a member in the military police force of the Indiana National Guard while exercising police powers in accordance with IC 10-16-23-3.

SECTION 7. IC 5-9-3-1, AS AMENDED BY P.L.238-2025, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. Persons discharged from the armed forces of the United States under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~, **IC 10-17-12-8.1(2)**, by reason of disability resulting from wounds or sickness incurred in the line of duty, shall be preferred for appointment to civil offices, provided they are found to possess the capacity necessary for the proper discharge of such offices.

SECTION 8. IC 5-9-3-2, AS AMENDED BY P.L.238-2025, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) Political subdivisions of the state of Indiana shall allow preference points to eligible armed forces veterans who are being examined for full time employment. Preference points awarded to such veterans on each such examination shall be ten percent (10%) of the total number of points which may be obtained thereon.

(b) To be eligible to receive preference points, under this chapter,



a person must have:

- (1) served ~~on active duty~~ in the armed forces of the United States for at least one hundred eighty-one (181) days; and
- (2) received a discharge from service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~; **IC 10-17-12-8.1(2)**.

(c) The provisions of this chapter are in lieu of any policy of a political subdivision allowing employment preference for veterans in effect before July 1, 1975.

SECTION 9. IC 5-10.3-7-5, AS AMENDED BY P.L.238-2025, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) A member who:

- (1) enters the United States armed services;
- (2) leaves the member's contributions in the fund;
- (3) except as provided in subsection (c), resumes service with the member's employer within one hundred twenty (120) days after the member's unconditional discharge; and
- (4) would be entitled to service credit for military service under the Uniformed Services Employment and Reemployment Rights Act (38 U.S.C. 4301 et seq.) if the member had resumed service with the member's employer within ninety (90) days after discharge;

is entitled to service credit for the armed service.

(b) A state employee who left employment before January 1, 1946, or an employee of a political subdivision who left employment before the participation date, to enter the United States armed services is entitled to service credit for the armed service if the member:

- (1) except as provided in subsection (c), resumes service with the employer within one hundred twenty (120) days after the member's unconditional discharge; and
- (2) would be entitled to service credit for military service under the applicable requirements of federal law in effect at the time of reemployment if the employee had resumed service with the employee's employer within ninety (90) days after discharge.

(c) The board shall extend the one hundred twenty (120) day reemployment requirement contained in subsection (a)(3) or (b)(1) if the board determines that an illness, an injury, or a disability related to the member's military service prevented the member from resuming employment within one hundred twenty (120) days after the member's discharge from military service. However, the board may not extend the deadline beyond thirty (30) months after the member's discharge.

(d) If a member retires and the board subsequently determines that the member is entitled to additional service credit due to the extension



of a deadline under subsection (c), the board shall recompute the member's benefit. However, the additional service credit may be used only in the computation of benefits to be paid after the date of the board's determination, and the member is not entitled to a recomputation of benefits received before the date of the board's determination.

(e) Notwithstanding any provision of this section, a member is entitled to service credit and benefits in the amount and to the extent required by the Uniformed Services Employment and Reemployment Rights Act (38 U.S.C. 4301 et seq.).

(f) Subject to the provisions of this section, an active member may purchase and claim not more than two (2) years of service credit for the member's service on active duty in the armed services if the member meets the following conditions:

(1) The member has at least one (1) year of credited service in the fund.

(2) The member serves on active duty in the armed services of the United States for at least six (6) months.

(3) The member receives a discharge from the armed services under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2)**.

(4) Before the member retires, the member makes contributions to the fund as follows:

(A) Contributions that are equal to the product of the following:

(i) The member's salary at the time the member actually makes a contribution for the service credit.

(ii) A rate, determined by the actuary of the fund, that is based on the age of the member at the time the member actually makes a contribution for service credit and computed to result in a contribution amount that approximates the actuarial present value of the benefit attributable to the service credit purchased.

(iii) The number of years of service credit the member intends to purchase.

(B) Contributions for any accrued interest, at a rate determined by the actuary of the fund, for the period from the member's initial membership in the fund to the date payment is made by the member.

However, a member is entitled to purchase service credit under this subsection only to the extent that service credit is not granted for that time under another provision of this section. At least ten (10) years of



1 service in Indiana is required before a member may receive a benefit
 2 based on service credits purchased under this section. A member who
 3 terminates employment before satisfying the eligibility requirements
 4 necessary to receive a monthly allowance or receives a monthly
 5 allowance for the same service from another tax supported public
 6 employee retirement plan other than under the federal Social Security
 7 Act may withdraw the purchase amount plus accumulated interest after
 8 submitting a properly completed application for a refund to the fund.

9 (g) The following apply to the purchase of service credit under
 10 subsection (f):

11 (1) The board may allow a member to make periodic payments of
 12 the contributions required for the purchase of the service credit.
 13 The board shall determine the length of the period during which
 14 the payments must be made.

15 (2) The board may deny an application for the purchase of service
 16 credit if the purchase would exceed the limitations under Section
 17 415 of the Internal Revenue Code.

18 (3) A member may not claim the service credit for purposes of
 19 determining eligibility or computing benefits unless the member
 20 has made all payments required for the purchase of the service
 21 credit.

22 SECTION 10. IC 5-10.4-4-8, AS AMENDED BY P.L.238-2025,
 23 SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 24 JULY 1, 2026]: Sec. 8. (a) This subsection applies to a member who
 25 retires before July 1, 1980. A member who had completed four (4)
 26 years of approved college teacher education before voluntary or
 27 involuntary induction into the military services is entitled to credit for
 28 that service as if the member had begun teaching before the induction.
 29 A member who serves in military service is considered a teacher and
 30 is entitled to the benefits of the fund if before or during the leave of
 31 absence the member pays into the fund the member's contributions.
 32 Time served by a member in military service for the duration of the
 33 hostilities or for the length of active service in the hostilities and the
 34 necessary demobilization time after the hostilities is not subject to the
 35 one-seventh rule set forth in section 7 of this chapter.

36 (b) This subsection applies to a member who retires after June 30,
 37 1980. A member who completed four (4) years of approved college
 38 teacher education before voluntary or involuntary induction into
 39 military service is entitled to credit for the member's active military
 40 service as if the member had begun teaching before the induction. A
 41 member who serves in military service is considered a teacher and is
 42 entitled to the benefits of the fund if the following conditions are met:



(1) The member has received a discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2)**.

(2) Except as provided in subsection (g), the member returns to active teaching service not later than twenty-four (24) months after the completion of active military service.

(3) The member has at least ten (10) years of in-state service credit.

The time served by a member in military service for the duration of the hostilities or for the length of active service in the hostilities and the necessary demobilization time after the hostilities is not subject to the one-seventh rule set forth in section 7 of this chapter. However, not more than six (6) years of military service credit may be granted under this subsection.

(c) This subsection applies to a member who retires after May 1, 1989. A member who had begun but had not completed four (4) years of approved college teacher education before voluntary or involuntary induction into the military services is entitled to service credit in an amount equal to the duration of the member's active military service if the following conditions are met:

(1) The member has received a discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2)**.

(2) Except as provided in subsection (g), the member returns to a four (4) year approved college teacher training program not later than twenty-four (24) months after the completion of active military service and subsequently completes that program.

(3) The member has at least ten (10) years of in-state service credit.

The time served by a member in active military service for the length of active service in the hostilities and the necessary demobilization is not subject to the one-seventh rule set forth in section 7 of this chapter. However, not more than six (6) years of military service credit may be granted under this subsection.

(d) This subsection applies to a member who retires after May 1, 1991, and who is employed at a state educational institution. A member who had begun but had not completed baccalaureate or post-baccalaureate education before voluntary or involuntary induction into military service is entitled to the member's active military service credit for the member's active military service in an amount equal to the duration of the member's military service if the following conditions are met:



(1) The member received a discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~.
IC 10-17-12-8.1(2).

(2) Except as provided in subsection (g), the member returns to baccalaureate or post-baccalaureate education not later than twenty-four (24) months after completion of active military service and subsequently completes that education.

(3) The member has at least ten (10) years of in-state service credit.

The time served by a member in active military service for the length of active service in the hostilities and the necessary demobilization is not subject to the one-seventh rule set forth in section 7 of this chapter. However, not more than six (6) years of military service credit may be granted under this subsection.

(e) For purposes of this section, a member returns to active teaching service on the earlier of:

- (1) the date on which the member signs a teacher's contract; or
- (2) the date on which the member is first employed in a position covered by this article.

(f) For purposes of this section, a member returns to:

- (1) a teacher training program; or
- (2) baccalaureate or post-baccalaureate education;

on the date the member registers for or enrolls in classes that the member attends.

(g) The board shall extend the twenty-four (24) month deadline contained in subsection (b)(2), (c)(2), or (d)(2) if the board determines that an illness, an injury, or a disability related to the member's military service prevented the member from returning to active teaching service or to a teacher education program not later than twenty-four (24) months after the member's discharge from military service. However, the board may not extend the deadline beyond forty-eight (48) months after the member's discharge.

(h) If a member retires and the board subsequently determines that the member is entitled to additional service credit due to the extension of a deadline under subsection (g), the board shall recompute the member's benefit. However, the additional service credit may be used only in the computation of benefits to be paid after the date of the board's determination, and the member is not entitled to a recomputation of benefits received before the date of the board's determination.

(i) Notwithstanding any provision of this section, a member is entitled to military service credit and benefits in the amount and to the



1 extent required by the federal Uniformed Services Employment and
 2 Reemployment Rights Act (38 U.S.C. 4301 et seq.), including all later
 3 amendments.

4 (j) Subject to this section, an active member may purchase and
 5 claim not more than two (2) years of service credit for the member's
 6 service on active duty in the armed services if the member meets the
 7 following conditions:

8 (1) The member has at least one (1) year of credited service in the
 9 fund.

10 (2) The member serves on active duty in the armed services of the
 11 United States for at least six (6) months.

12 (3) The member receives a discharge from the armed services
 13 under conditions other than conditions set forth in
 14 ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2)**.

15 (4) Before the member retires, the member makes contributions
 16 to the fund as follows:

17 (A) Contributions that are equal to the product of:

18 (i) the member's salary at the time the member actually
 19 makes a contribution for the service credit;

20 (ii) a rate, determined by the actuary of the fund, that is
 21 based on the age of the member at the time the member
 22 actually makes a contribution for service credit and
 23 computed to result in a contribution amount that
 24 approximates the actuarial present value of the benefit
 25 attributable to the service credit purchased; and

26 (iii) the number of years of service credit the member
 27 intends to purchase.

28 (B) Contributions for any accrued interest, at a rate determined
 29 by the actuary of the fund, for the period from the member's
 30 initial membership in the fund to the date payment is made by
 31 the member.

32 However, a member is entitled to purchase service credit under this
 33 subsection only to the extent that service credit is not granted for that
 34 time under another provision of this section. At least ten (10) years of
 35 service in Indiana is required before a member may receive a benefit
 36 based on service credits purchased under this section. A member who
 37 terminates employment before satisfying the eligibility requirements
 38 necessary to receive a monthly allowance or receives a monthly
 39 allowance for the same service from another tax supported public
 40 employee retirement plan other than under the federal Social Security
 41 Act may withdraw the purchase amount plus accumulated interest after
 42 submitting a properly completed application for a refund to the fund.



1 (k) The following apply to the purchase of service credit under
2 subsection (j):

3 (1) The board may allow a member to make periodic payments of
4 the contributions required for the purchase of the service credit.
5 The board shall determine the length of the period during which
6 the payments must be made.

7 (2) The board may deny an application for the purchase of service
8 credit if the purchase would exceed the limitations under Section
9 415 of the Internal Revenue Code.

10 (3) A member may not claim the service credit for purposes of
11 determining eligibility or computing benefits unless the member
12 has made all payments required for the purchase of the service
13 credit.

14 (l) This subsection applies to a member who retires after June 30,
15 2006. A member may not receive credit under this section for service
16 for which the member receives service credit under the terms of a
17 military or another governmental retirement plan.

18 SECTION 11. IC 6-8.1-9-4, AS AMENDED BY P.L.43-2021,
19 SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
20 JULY 1, 2026]: Sec. 4. (a) Every individual (other than a nonresident)
21 who files an individual income tax return and who is entitled to a
22 refund from the department of state revenue because of the
23 overpayment of income tax for a taxable year may designate on the
24 individual's annual state income tax return that either a specific amount
25 or all of the refund to which the individual is entitled shall be paid over
26 to one (1) or more of the funds described in subsection (c). If the refund
27 to which the individual is entitled is less than the total amount
28 designated to be paid over to one (1) or more of the funds described in
29 subsection (c), all of the refund to which the individual is entitled shall
30 be paid over to the designated funds, but in an amount or amounts
31 reduced proportionately for each designated fund. If an individual
32 designates all of the refund to which the individual is entitled to be paid
33 over to one (1) or more of the funds described in subsection (c) without
34 designating specific amounts, the refund to which the individual is
35 entitled shall be paid over to each fund described in subsection (c) in
36 an amount equal to the refund divided by the number of funds
37 described in subsection (c), rounded to the lowest cent, with any part
38 of the refund remaining due to the effects of rounding to be deposited
39 in the nongame fund.

40 (b) Every husband and wife (other than nonresidents) who file a
41 joint income tax return and who are entitled to a refund from the
42 department of state revenue because of the overpayment of income tax



for a taxable year may designate on their annual state income tax return that either a specific amount or all of the refund to which they are entitled shall be paid over to one (1) or more of the funds described in subsection (c). If the refund to which a husband and wife are entitled is less than the total amount designated to be paid over to one (1) or more of the funds described in subsection (c), all of the refund to which the husband and wife are entitled shall be paid over to the designated funds, but in an amount or amounts reduced proportionately for each designated fund. If a husband and wife designate all of the refund to which the husband and wife are entitled to be paid over to one (1) or more of the funds described in subsection (c) without designating specific amounts, the refund to which the husband and wife are entitled shall be paid over to each fund described in subsection (c) in an amount equal to the refund divided by the number of funds described in subsection (c), rounded to the lowest cent, with any part of the refund remaining due to the effects of rounding to be deposited in the nongame fund.

(c) Designations under subsection (a) or (b) may be directed only to the following funds:

(1) The nongame fund.

(2) The state general fund for exclusive use in funding public education for kindergarten through grade 12.

(3) The military family relief fund.

(d) The instructions for the preparation of individual income tax returns shall contain a description of the purposes of the following:

(1) The nongame and endangered species program. The description of this program shall be written in cooperation with the department of natural resources.

(2) The funding of public education for kindergarten through grade 12. The description of this purpose shall be written in cooperation with the secretary of education.

(3) The funding for financial assistance to ~~qualified~~ service members ~~(as defined in IC 10-17-12-7.5)~~ **described in IC 10-17-12-8.1(1) and IC 10-17-12-8.1(2), who are Indiana residents**, and their families. The description of this purpose shall be written in cooperation with the Indiana department of veterans' affairs.

(e) The department shall interpret a designation on a return under subsection (a) or (b) that is illegible or otherwise not reasonably discernible to the department as if the designation had not been made.

SECTION 12. IC 9-18.5-7-3, AS AMENDED BY P.L.238-2025, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 3. (a) An Indiana resident who is a current or former member of the Army or Air National Guard may apply for and receive one (1) or more license plates under this chapter.

(b) An individual applying for a National Guard license plate under this chapter as a current member of the National Guard must demonstrate the individual's status as a current member of the Army or Air National Guard by presenting the following with the individual's application:

(1) A current United States armed forces identification card.

(2) A letter signed by the individual's commanding officer identifying the individual as a current active member.

(c) An individual applying for a National Guard license plate under this chapter as a former member of the National Guard must present with the individual's application a copy of the individual's:

(1) National Guard Bureau Form 22 or 22A showing the individual received a discharge under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~; **IC 10-17-12-8.1(2)**; or

(2) National Guard Bureau Form 23D or 23E showing the individual as retired;

as proof of the individual's status as a former member of the Army or Air National Guard.

SECTION 13. IC 10-13-8-5, AS AMENDED BY P.L.122-2023, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. As used in this chapter, "law enforcement officer" means any of the following:

(1) A state police officer.

(2) A county sheriff.

(3) A county police officer.

(4) A correctional officer.

(5) An excise police officer.

(6) A county police reserve officer.

(7) A city police officer.

(8) A city police reserve officer.

(9) A conservation enforcement officer.

(10) A town marshal.

(11) A deputy town marshal.

(12) A probation officer.

(13) A state educational institution police officer appointed under IC 21-39-4.

(14) A gaming agent of the Indiana gaming commission.

(15) A person employed by a political subdivision (as defined in IC 36-1-2-13) and appointed as a special deputy under



1 IC 36-8-10-10.6.

2 (16) A school corporation police officer appointed under
3 IC 20-26-16.

4 (17) A police officer of a public or private postsecondary
5 educational institution whose board of trustees has established a
6 police department under IC 21-17-5-2 or IC 21-39-4-2.

7 (18) A tribal police officer.

8 (19) A hospital police officer employed by a hospital police
9 department established under IC 16-18-4.

10 (20) A conservancy district marshal.

11 (21) A deputy conservancy district marshal.

12 **(22) A member in the military police force of the Indiana**
13 **National Guard while exercising police powers in accordance**
14 **with IC 10-16-23-3.**

15 SECTION 14. IC 10-16-1-5.6 IS ADDED TO THE INDIANA
16 CODE AS A NEW SECTION TO READ AS FOLLOWS
17 [EFFECTIVE JULY 1, 2026]: **Sec. 5.6. "Civilian cyber corps" means**
18 **the Indiana civilian cyber corps program established by**
19 **IC 10-16-22.**

20 SECTION 15. IC 10-16-1-5.7 IS ADDED TO THE INDIANA
21 CODE AS A NEW SECTION TO READ AS FOLLOWS
22 [EFFECTIVE JULY 1, 2026]: **Sec. 5.7. "Civilian cyber corps**
23 **adviser" means an individual who serves as a nondeployable**
24 **member in the Indiana civilian cyber corps program for the**
25 **purpose of providing support and technical expertise for civilian**
26 **cyber corps volunteers.**

27 SECTION 16. IC 10-16-1-5.8 IS ADDED TO THE INDIANA
28 CODE AS A NEW SECTION TO READ AS FOLLOWS
29 [EFFECTIVE JULY 1, 2026]: **Sec. 5.8. "Civilian cyber corps**
30 **volunteer" means an individual who has entered into an agreement**
31 **with the adjutant general to serve as a deployable member in the**
32 **Indiana civilian cyber corps program.**

33 SECTION 17. IC 10-16-1-8.5 IS ADDED TO THE INDIANA
34 CODE AS A NEW SECTION TO READ AS FOLLOWS
35 [EFFECTIVE JULY 1, 2026]: **Sec. 8.5. "Cybersecurity client" means**
36 **a:**

- 37 (1) state agency (as defined in IC 4-1-10-2);
- 38 (2) political subdivision (as defined in IC 36-1-2-13);
- 39 (3) state educational institution (as defined in IC 21-7-13-32);
- 40 (4) critical infrastructure facility (as defined in
- 41 IC 35-46-10-1); or
- 42 (5) critical infrastructure utility (as defined in IC 35-46-10-1);



1 that has requested and is using the rapid response assistance of the
 2 Indiana civilian cyber corps program under the direction of the
 3 adjutant general.

4 SECTION 18. IC 10-16-1-8.6 IS ADDED TO THE INDIANA
 5 CODE AS A NEW SECTION TO READ AS FOLLOWS
 6 [EFFECTIVE JULY 1, 2026]: Sec. 8.6. "Cybersecurity incident"
 7 means an incident as defined by 44 U.S.C. 3552(b)(2).

8 SECTION 19. IC 10-16-1-19.3 IS ADDED TO THE INDIANA
 9 CODE AS A NEW SECTION TO READ AS FOLLOWS
 10 [EFFECTIVE JULY 1, 2026]: Sec. 19.3. "State police department"
 11 refers to the state police department established by IC 10-11-2-4.

12 SECTION 20. IC 10-16-2-7, AS AMENDED BY P.L.15-2010,
 13 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 14 JULY 1, 2026]: Sec. 7. The adjutant general shall appoint ~~four~~ (4)
 15 assistant adjutants general additional general officers to serve at the
 16 will and pleasure of the adjutant general as follows:

17 (1) ~~Excluding the adjutant general, there are six~~ (6) general
 18 officer authorizations for the Indiana Army National Guard
 19 and two (2) general authorizations for the Indiana Air
 20 National Guard under this section.

21 (2) Included in the general officer authorizations described in
 22 subdivision (1), one (1) general officer position shall be
 23 established as the Director, Joint Staff, Indiana Joint Forces
 24 Headquarters. The position may be filled by either an Army
 25 or Air National Guard member.

26 (3) To be eligible for appointment to a general officer under
 27 subdivision (1), an individual must meet the following
 28 requirements:

29 (A) The individual must be a federally recognized officer
 30 who has attained the rank of colonel or higher.

31 (B) The individual must be eligible for appointment in the
 32 Indiana National Guard.

33 ~~(1) One~~ (1) assistant adjutant general from the Indiana Army
 34 National Guard to be commander of the Indiana Army National
 35 Guard forces, except the forces described in subdivision (3). A
 36 person is not eligible for appointment as assistant adjutant general
 37 unless the person is a member of the Indiana Army National
 38 Guard and has attained the rank of major or above. The person
 39 must be a federally recognized officer and may hold the rank of
 40 major general or other rank authorized by the table of
 41 organization for the Army National Guard.

42 ~~(2) One~~ (1) assistant adjutant general from the Indiana Army



1 National Guard to be chief of staff to the adjutant general for all
2 the Indiana Army National Guard forces; except those forces
3 described in subdivision (4). This assistant adjutant general shall
4 perform duties assigned by the adjutant general and is responsible
5 for all administrative and operational functions of the Indiana
6 Army National Guard; except those related to forces described in
7 subdivision (4). A person is not eligible for appointment as
8 assistant adjutant general unless the person is a member of the
9 Indiana Army National Guard with at least six (6) years service in
10 the Indiana Army National Guard and has attained the rank of
11 major or above. The person must be a federally recognized officer
12 and may hold the rank of brigadier general or other rank
13 authorized by the table of organization for the Army National
14 Guard.

15 (3) One (1) assistant adjutant general from the Indiana Air
16 National Guard to be chief of staff to the adjutant general for all
17 the Indiana Air National Guard forces. This assistant adjutant
18 general shall perform duties assigned by the adjutant general and
19 is responsible for administrative and operational functions of the
20 Indiana Air National Guard. A person is not eligible for
21 appointment as air forces chief of staff unless the person is a
22 member of the Indiana Air National Guard with at least six (6)
23 years service as a commissioned officer and has attained the rank
24 of major or above. The person must be a federally recognized
25 officer and may hold the rank of brigadier general or other rank
26 authorized by the tables of organization for the Air National
27 Guard.

28 (4) One (1) assistant adjutant general from the Indiana Army
29 National Guard to be chief of staff to the adjutant general for all
30 Indiana Army National Guard forces assigned to the Camp
31 Atterbury Muscatatuck Urban Training Center. This assistant
32 adjutant general shall perform duties assigned by the adjutant
33 general and is responsible for all administrative and operational
34 functions of Indiana Army National Guard forces assigned to the
35 Camp Atterbury Muscatatuck Urban Training Center. A person
36 is not eligible for appointment as assistant adjutant general unless
37 the person is a member of the Indiana Army National Guard with
38 at least six (6) years service in the Indiana Army National Guard
39 and has attained the rank of major or above. The person must be
40 a federally recognized officer and may hold the rank of brigadier
41 general or other rank authorized by the table of organization for
42 the Army National Guard.



SECTION 21. IC 10-16-3-2, AS AMENDED BY P.L.38-2011, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. The state armory board established by section 1 of this chapter may contribute funds in support of the following authorized duties and responsibilities of the adjutant general:

- (1) The ~~military department of the~~ Indiana ceremonial unit.
- (2) The Indiana guard reserve.
- (3) The annual report of the adjutant general's department.
- (4) The medical treatment, pensions, and funeral expenses of officers and soldiers wounded, disabled, or killed while in the active service of the state.
- (5) Expenditures for public relations and the promotion of morale within the adjutant general's department. ~~that are not paid by the United States Department of Defense.~~
- (6) Recruitment and retention expenditures of the adjutant general's department. ~~that are not paid by the United States Department of Defense.~~
- (7) The publication of the armed forces law of Indiana in accordance with IC 10-16-2-9(d).

(8) Armory modernization and care for armories.

SECTION 22. IC 10-16-3-6, AS AMENDED BY P.L.38-2011, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) The state armory board may **utilize any and all appropriate methods to:**

- (1) lease real estate from:
 - (A) the federal, the state, or a local government; ~~or~~
 - (B) a federal, state, or local agency; or
 - (C) a private entity or individual; or**
- (2) purchase real estate throughout the state;

where necessary to provide armories or other military purposes.

(b) The state armory board shall lease or purchase real estate in the name and for the use of the state. The state armory board may erect on the real estate an armory or another appropriate structure to be used for meetings, rendezvous, and drill purposes by the following organizations:

- (1) A company.
- (2) A battery.
- (3) A troop.
- (4) A battalion.
- (5) A regiment.
- (6) A division organization.
- (7) An air ~~squadron~~ **wing**.



(8) A related group.

(9) An organization authorized by the state board.

The ordnance stores, quartermaster stores, and other property issued to an organization described in this subsection and occupying the armory shall be stored in the armory or other appropriate structure.

(c) The state armory board shall arrange for the occupancy and use of the armories under the direction and responsibility of the senior officer in command of an organization described in subsection (b).

(d) An armory may not be erected on land that is leased for less than ~~fifty (50)~~ **twenty-five (25)** years.

(e) The Indiana wing of the civil air patrol and its subordinate units may use armory facilities without charge when the officer responsible for the armory determines the use would not interfere with operational training requirements of the military forces concerned.

SECTION 23. IC 10-16-3-7, AS AMENDED BY P.L.38-2011, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. The state armory board shall constitute a board for the general management, care, and custody of the armories. The state armory board may adopt **rules policies or procedures** for:

(1) the management and government of the armories;

(2) the guidance of the organizations occupying the armories; and

(3) any other purpose consistent with this chapter.

SECTION 24. IC 10-16-3-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 8: (a) This section applies if a contract for the procurement of property by the state armory board or a local armory board is awarded under this chapter by acceptance of bids, proposals, or quotations:~~

~~(b) A bid, proposal, or quotation submitted by a trust (as defined in IC 30-4-1-1(a)) must identify each:~~

~~(1) beneficiary of the trust; and~~

~~(2) settlor empowered to revoke or modify the trust.~~

SECTION 25. IC 10-16-3-9, AS AMENDED BY P.L.38-2011, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) The state armory board may receive from any source donations of real or personal property or contributions of money to aid in the support and assistance of:

(1) the armed forces of Indiana; and

(2) the armed forces of Indiana called or inducted into federal service.

Property received under this subsection shall be held as other property for the use of the state.

(b) Counties, cities, and municipalities may make donations and



contributions under subsection (a).

(c) This subsection applies to ~~real or personal~~ **any** property:

(1) donated under subsection (a); ~~and~~

(2) upon which the state of Indiana has not erected structures; **and**

(3) if a donation agreement has not been executed between the state armory and the donor of the property.

The state armory board may determine that ~~real~~ **any** property donated under subsection (a) is no longer usable or cannot be used by the military department. The state armory board may certify its determination to the adjutant general. The adjutant general may reconvey ~~the real~~ **any** property to the donor or to another entity or individual that the adjutant general considers appropriate.

SECTION 26. IC 10-16-3-10 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. All expenses incurred in the operation of state armories shall be paid out of:

(1) the rentals;

(2) the income;

(3) the earnings;

(4) any other receipts; and

(5) any other appropriation provided by law;

to pay the expenses incurred in the operation of the armories **or other matters consistent with this chapter.**

SECTION 27. IC 10-16-3-12 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) If the state armory board receives from the ~~governor~~ **adjutant general** information of the disbandment of the organization of the armed forces of Indiana occupying and using an armory, the state armory board shall take charge of the armory.

(b) The state armory board shall sell the armory for the highest price at public or private sale after publication of the sale for a period of ten (10) days and return the proceeds into the state treasury.

SECTION 28. IC 10-16-3-13, AS AMENDED BY P.L.38-2011, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. (a) The state armory board may:

(1) sell, lease, convey, or otherwise dispose of any ~~real~~ property belonging to the state and being under the charge and in the custody and possession of the state armory board if, in the judgment of the state armory board:

~~(1)~~ **(A)** the ~~real~~ property can no longer be used for the purpose for which it was acquired; and

~~(2)~~ **(B)** the conveyance provides a substantial public or military benefit; **or**



(2) elect to transfer the property to the Indiana department of administration under IC 4-20.5-7 or IC 5-22-21.

(b) The sale shall be made at public or private sale, after appropriate publication, for the highest price to be obtained for the same. If the state armory board takes bids in the sale of ~~real~~ property, the board shall require a bid submitted by a trust (as defined in IC 30-4-1-1(a)) to identify all of the following:

(1) Each beneficiary of the trust.

(2) Each settlor empowered to revoke or modify the trust.

(c) All money derived from the sale, conveyance, or other disposition of any ~~real~~ property shall be paid into the state treasury, but may be used for the purchase of other ~~real~~ property for armory purposes.

SECTION 29. IC 10-16-3-14, AS AMENDED BY P.L.38-2011, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) **Except as provided in subsection (c),** if the state armory board sells any real property, the value of the property shall be determined by **an appraiser** ~~three (3) disinterested appraisers~~ appointed by the state armory board with the approval of the **adjutant general.** ~~governor.~~

(b) Real property may not be sold for less than the appraised value of the real property **unless the sale is approved by the adjutant general.** If the real property cannot be sold at its appraised value, it may be reappraised.

(c) If the adjutant general determines that the value of the real property is likely to be less than fifty thousand dollars (\$50,000), the appraisal described in subsection (a) is not required to sell the real property.

(d) The state armory board may transfer state real property to a person in exchange for property of like value that is transferred by the person to the state. The state armory board must establish that properties exchanged are of like value through appraisals or other means approved by the adjutant general.

~~(c)~~ (e) Real property may not be sold **or transferred** unless:

(1) the ~~governor~~ **adjutant general** approves the sale **or transfer**; and

(2) the ~~attorney general~~ **state armory board's legal counsel** states in writing that all the conditions necessary to the legal and valid sale **or transfer** of the property have been fully complied with.

SECTION 30. IC 10-16-3-15, AS AMENDED BY P.L.9-2024, SECTION 316, IS AMENDED TO READ AS FOLLOWS



[EFFECTIVE JULY 1, 2026]: Sec. 15. (a) The purchaser of real property sold under this chapter or to whom real property is conveyed or otherwise disposed of under this chapter shall pay the purchase money as agreed upon ~~and certified by to~~ the state armory board ~~to the treasurer of state~~ for the use and benefit of the state armory board. ~~The purchaser shall take the receipt of the treasurer of state.~~

(b) The state ~~comptroller~~ **armory board** shall execute a deed of conveyance to the purchaser ~~or the exchanging party~~ after the purchaser ~~or the exchanging party~~ presents a form that is legally sufficient to memorialize and consummate the transaction and that is suitable for recording in the county upon which the property is located. presents the following documents to the state comptroller:

(1) The receipt of the treasurer of state.

(2) A certified resolution approved by the state armory board setting forth the terms and conditions of the sale, conveyance, or other disposition.

The deed of conveyance shall be signed by the ~~governor~~ **president of the state armory board** and officially attested by the ~~adjutant general, state comptroller with the seal of the state.~~

SECTION 31. IC 10-16-3-16, AS AMENDED BY P.L.9-2024, SECTION 317, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) The state armory board shall report annually of the proceedings incident to the location and management of the armories and a detailed account of disbursements.

(b) The report shall be filed ~~in the office of the state comptroller~~ **with the state board of accounts** and a copy furnished to the adjutant general for publication in the annual report of the adjutant general's department.

SECTION 32. IC 10-16-3-17 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. The ~~adjutant general's office~~ **state examiner, personally or through the deputy examiners, field examiners, or private examiners,** shall make a full and complete examination and report of all transactions of all individuals, persons, trustees, boards, banks, firms, corporations, and others engaged in the acquisition of sites for and the construction of state armories, including examination of the following:

(1) The plans and specifications of armories.

(2) Construction work performed or being performed.

(3) The records of bonds issued and redeemed or proposed to be issued.

(4) The records of all lease contracts for building or maintaining armories.



(5) The records of receipts and earnings of all armories, except those earnings and receipts arising from shows, benefits, and other similar activities engaged in by members of the armories and other volunteers for the use and benefit of the members.

(6) All money handled by the board or boards, by trustees of state armories, by the state armory board or local armory boards, or by the adjutant general, including all appropriations made for armories by the general assembly.

~~All powers conferred upon the state examiner, deputy examiner, field examiner, private examiner, and the attorney general under IC 5-11-6 by petition are conferred upon these officers, examiners, and the department without any petition. All the powers given these officers, examiners, and the department under any other statute may be used for the purpose of carrying out this chapter.~~

SECTION 33. IC 10-16-3-18 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 18. ~~(a) The state armory board examiner, with the approval of the governor, may employ expert engineering and architectural services when necessary to assist the state armory board examiner, deputy examiner, field examiners, or private examiners in making inspections and examinations under this chapter.~~

~~(b) The state examiner, with the approval of the governor, shall fix and determine the amount to be paid for the expert service. Field examiners of the state board of accounts, when employed in performing the services provided for in this chapter, are entitled to receive the per diem provided by IC 4-10-11-2 and IC 4-10-11-2.1 for field examiners and all necessary expenses incurred in carrying out their duties as provided for in this chapter.~~

SECTION 34. IC 10-16-6-5 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) A person may not be commissioned as an officer of the Indiana national guard unless the person:

- (1) is temperate and of good moral character; and
- (2) has successfully passed tests as to physical, mental, and professional fitness as may be prescribed by the laws and regulations applicable to the federally recognized national guard.

(b) In the selection and appointment of commissioned officers, preference shall be given to:

- (1) a person with prior active military service;
- (2) an enlisted person;
- (3) a member of the **army** or air national guard; and
- (4) a graduate of a school teaching military science.



SECTION 35. IC 10-16-6-12, AS AMENDED BY P.L.238-2025, SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) A commissioned officer:

(1) who serves in the Indiana national guard for at least five (5) years; or

(2) who becomes permanently disabled from performing the officer's duties, irrespective of length of service;

may, upon retirement from the military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~, **IC 10-17-12-8.1(2)**, whether by resignation or otherwise, and upon application to the adjutant general, be carried upon a roll to be established and maintained in the office of the adjutant general. The roll shall be designated the Indiana national guard retired list.

(b) The commissioned officer may wear, on occasion of ceremony, the uniform of the highest rank held by the officer.

(c) An officer carried on the Indiana national guard retired list, if qualified, is eligible for detail or appointment on the general staff or the staff of any commander when not physically disqualified for military duty. However, if an officer carried on the Indiana national guard retired list is appointed to a staff position as described in this section, the officer shall be recommissioned in the rank to which the officer has been appointed. The officer shall hold this rank during the time of the staff appointment unless the officer is promoted to a higher rank.

(d) If the officer retires for a second time from active service, the officer shall be entered on the Indiana national guard retired list with the officer's highest rank.

(e) An officer whose name appears on the national guard retired list is not entitled to receive any military pay or emolument from the state during the time the officer remains on the national guard retired list unless the officer is specifically assigned to duty on orders from the governor. If the officer is assigned to duty on orders from the governor, the officer is entitled only to the military pay and allowance provided by law for officers of the rank to which appointed.

SECTION 36. IC 10-16-18-1 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 1. A contract may not be entered into by the adjutant general or the armory board that provides for the use of Stout Field, Indianapolis, for purposes of commercial flying by transportation companies.~~

SECTION 37. IC 10-16-21 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Indiana Cyber Civilian Corps Program Advisory Board).

SECTION 38. IC 10-16-22 IS ADDED TO THE INDIANA CODE AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]:

Chapter 22. Indiana Civilian Cyber Corps Program

Sec. 1. (a) The Indiana civilian cyber corps program is established as a subdivision of the Indiana guard reserve organized and maintained under IC 10-16-8 with the primary mission of increasing cybersecurity awareness, capability, and capacity throughout Indiana. The secondary mission of the civilian cyber corps is to provide rapid response capabilities for cybersecurity clients that would otherwise be unable to appropriately:

- (1) respond to;
 - (2) mitigate; or
 - (3) recover from;
- a cybersecurity incident.

(b) The adjutant general shall administer the civilian cyber corps program.

(c) The following state agencies shall designate a liaison to the civilian cyber corps:

- (1) The office of technology established by IC 4-13.1-2-1.
- (2) The department of homeland security established by IC 10-19-2-1.
- (3) The state police department.

Sec. 2. (a) The adjutant general may invite and appoint an individual who has expertise in addressing cybersecurity incidents to serve as a civilian cyber corps volunteer or civilian cyber corps adviser in a manner prescribed by the adjutant general.

(b) The adjutant general shall require an individual who accepts an invitation to serve as a civilian cyber corps volunteer or civilian cyber corps adviser under subsection (a) to submit to a criminal history check.

Sec. 3. (a) A civilian cyber corps volunteer or civilian cyber corps adviser is not an agent, employee, or independent contractor of the state of Indiana for any purpose and has no authority to bind the state of Indiana with regard to third parties.

(b) The state of Indiana is not liable to a civilian cyber corps volunteer or civilian cyber corps adviser for personal injury or property damage suffered by the civilian cyber corps volunteer or civilian cyber corps adviser through participation in the civilian cyber corps.

Sec. 4. (a) The adjutant general, the military department, and the state of Indiana are immune from tort liability for acts or omissions by a civilian cyber corps volunteer or civilian cyber corps adviser as provided in this chapter.



(b) A civilian cyber corps volunteer or civilian cyber corps adviser is subject to the same civil and criminal immunity protections as a member of the Indiana National Guard under IC 10-16-7-7(b) and IC 10-16-7-7(d) for any act done by the civilian cyber corps volunteer or civilian cyber corps adviser in the discharge of the civilian cyber corps volunteer's or civilian cyber corps adviser's official duty under this chapter.

Sec. 5. The civilian cyber corps shall conduct:

- (1) an annual meeting that meets at the call of the adjutant general; and
- (2) critical incident training or exercises at the call of the adjutant general.

Sec. 6. (a) A cybersecurity client may request cybersecurity training by the civilian cyber corps by submitting a request to the civilian cyber corps in a manner prescribed by the adjutant general.

(b) To initiate the deployment of a civilian cyber corps volunteer to provide training to a cybersecurity client, the adjutant general shall indicate in writing that the civilian cyber corps volunteer is authorized to provide training to the cybersecurity client.

(c) The adjutant general may enter into a contract with a cybersecurity client as a condition of providing training to the cybersecurity client through the civilian cyber corps.

(d) Acceptance by a cybersecurity client of training from a civilian cyber corps volunteer under this chapter must be made by the cybersecurity client in writing.

(e) The adjutant general shall maintain a written document initiating the deployment of a civilian cyber corps volunteer to provide training to a cybersecurity client for:

- (1) six (6) years after the end of the deployment; or
- (2) the length of time required under the adjutant general's record retention policies;

whichever is longer.

Sec. 7. (a) A cybersecurity client:

- (1) shall notify the state police department upon the occurrence of a cybersecurity incident before requesting response capabilities of the civilian cyber corps; and
- (2) may, upon recognition of a potential security vulnerability that could lead to a cybersecurity incident, request the adjutant general to deploy one (1) or more civilian cyber corps volunteers to provide rapid response assistance to the cybersecurity client.



(b) The adjutant general may, at the adjutant general's discretion, initiate:

(1) the deployment of a civilian cyber corps volunteer; or
 (2) the nondeployment of a civilian cyber corps adviser;
 upon recognition of a potential security vulnerability that could lead to a cybersecurity incident and at the request of the cybersecurity client.

(c) To initiate the deployment of a civilian cyber corps volunteer to provide assistance to a cybersecurity client, the adjutant general shall indicate in writing that the civilian cyber corps volunteer is authorized to provide assistance to the cybersecurity client. A single written document may initiate the deployment of more than one (1) civilian cyber corps volunteer.

(d) The adjutant general may enter into a contract with a cybersecurity client as a condition of providing assistance to the cybersecurity client through the civilian cyber corps.

(e) Acceptance by a cybersecurity client of assistance from a civilian cyber corps volunteer under this chapter shall be made by the cybersecurity client in writing.

(f) The adjutant general shall maintain a written document initiating the deployment of a civilian cyber corps volunteer to provide assistance to a cybersecurity client for:

(1) six (6) years after the end of the deployment; or
 (2) the length of time required under the adjutant general's record retention policies;
 whichever is longer.

(g) At the discretion of the adjutant general, the deployment of a civilian cyber corps volunteer may be extended in writing in the same manner as the initial deployment.

Sec. 8. (a) The adjutant general shall publish guidelines for the operation of the civilian cyber corps program. At a minimum, the published guidelines must include the following:

(1) An explanation of the standards the adjutant general will use to determine whether an individual may serve as a civilian cyber corps volunteer or civilian cyber corps adviser and an explanation of the process by which an individual may become a civilian cyber corps volunteer or civilian cyber corps adviser.

(2) An explanation of the requirements the adjutant general will impose when a cybersecurity client requests and receives the assistance of the civilian cyber corps.

(3) An explanation of the process by which the civilian cyber



corps will select and prioritize cybersecurity clients requesting assistance.

(b) The adjutant general may provide, or contract for the provision of, appropriate training to members of the civilian cyber corps.

(c) The military department may provide compensation for actual and necessary travel and subsistence expenses incurred by a civilian cyber corps volunteer on a deployment.

(d) The adjutant general may establish a fee schedule for assistance provided by the civilian cyber corps.

Sec. 9. (a) Information that is voluntarily given to the civilian cyber corps or obtained under this chapter that would identify or provide as a means of identifying a person or cybersecurity client, and the disclosure of which may:

(1) cause the person or cybersecurity client to become a victim of a cybersecurity incident; or

(2) disclose a person's or cybersecurity client's cybersecurity plans or cybersecurity related practices, procedures, methods, results, organizational information system infrastructure, hardware, or software;

is confidential and exempt from disclosure under IC 5-14-3-4.

(b) The work product of a civilian cyber corps volunteer or civilian cyber corps adviser under this chapter is confidential and exempt from disclosure under IC 5-14-3-4.

SECTION 39. IC 10-16-23 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 23. Military Police Force of the Indiana National Guard

Sec. 1. The adjutant general may establish a military police force of the Indiana National Guard.

Sec. 2. (a) Before granting police powers to an individual appointed as a member of the military police force of the Indiana National Guard, the adjutant general shall validate that the individual has a current security clearance and has not been convicted of a felony.

(b) An individual appointed to serve in the military police force of the Indiana National Guard may not exercise police powers until the individual successfully completes either army or air military police occupational training and receives qualifying instruction on Indiana law enforcement prescribed by the adjutant general.

(c) An individual appointed to the military police force of the



1 **Indiana National Guard shall take an appropriate oath of office in**
 2 **the form and manner prescribed by the governor.**

3 **Sec. 3. The governor may authorize the military police force of**
 4 **the Indiana National Guard to exercise police powers throughout**
 5 **Indiana, or in any part of Indiana prescribed by the governor, if**
 6 **the governor orders the military police force of the Indiana**
 7 **National Guard to state active duty under IC 10-16-7-7.**

8 **Sec. 4. An individual serving in the military police force of the**
 9 **Indiana National Guard who is authorized to exercise police**
 10 **powers under section 3 of this chapter may:**

- 11 (1) **make an arrest;**
- 12 (2) **conduct a search or seizure of a person or property;**
- 13 (3) **carry a firearm; and**
- 14 (4) **exercise other police powers with respect to the**
 15 **enforcement of Indiana laws.**

16 SECTION 40. IC 10-17-1-9, AS AMENDED BY P.L.238-2025,
 17 SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 18 JULY 1, 2026]: Sec. 9. (a) Subject to subsection (h), a county executive
 19 shall employ a service officer and may employ service officer assistants
 20 to serve the veterans of the county. However, with the approval of the
 21 commission, two (2) or more counties may enter into an agreement to
 22 employ a service officer if each county demonstrates to the commission
 23 that the workload does not justify each county employing a separate
 24 county service officer.

25 (b) Subject to subsection (h), the mayor of a city may employ a
 26 service officer and may employ service officer assistants to serve the
 27 veterans of the city.

28 (c) The service officer shall:

29 (1) be:

30 (A) a veteran who received a discharge from military service
 31 under conditions other than conditions set forth in
 32 ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)** and who has at least
 33 six (6) months of active service in the armed forces of the
 34 United States; or

35 (B) a service officer assistant with not less than two (2) years
 36 of experience; and

37 (2) be a resident of Indiana or become a resident of Indiana not
 38 more than six (6) months after the service officer's start date.

39 (d) A service officer assistant must be a resident of Indiana or
 40 become a resident of Indiana not later than six (6) months after the
 41 service officer assistant's start date and:

42 (1) satisfy the requirements specified in subsection (c)(1); or



(2) be the spouse, surviving spouse, parent, or child of a person who satisfies the requirements specified in subsection (c)(1).

(e) A rule contrary to subsection (c) or (d) is void.

(f) County and city fiscal bodies may appropriate funds necessary for the purposes described in this section.

(g) Every county or city official and department of the county or city shall cooperate with the service officer and shall provide the service officer with information necessary in connection with the performance of the service officer's duties. Nothing in this subsection shall be construed to require a county or city to share information that is otherwise considered confidential in accordance with law.

(h) After June 30, 2026, a service officer must be accredited by the department in order to provide service to veterans on behalf of the county or city.

SECTION 41. IC 10-17-1-11, AS AMENDED BY P.L.61-2023, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) The following employees of the Indiana department of veterans' affairs must satisfy the requirements set forth in section 5(a) of this chapter:

(1) State service officers.

(2) Director of the state approving agency.

(3) Director of the Indiana state veterans' cemetery established by IC 10-17-11-4.

(b) An employee of the Indiana department of veterans' affairs not described in subsection (a) must **be an Indiana resident who:**

(1) ~~satisfy~~; **received an honorable discharge from the armed forces of the United States or the national guard (as defined in IC 5-9-4-4);** or

(2) ~~be~~ **is** the spouse, surviving spouse, parent, or child of a person who satisfies the requirements set forth in ~~section 5(a) of this chapter~~; **subdivision (1).**

SECTION 42. IC 10-17-9-5, AS AMENDED BY P.L.238-2025, SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The superintendent may not appoint or employ a person in an office or a place in the Indiana Veterans' Home because of the political views or affiliation of the appointee or employee or for a reason other than capacity and fitness for the duties to be performed by the appointee or employee. However, among applicants for appointment found capable and fit, preference shall be given to a military veteran who received a discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)**, and the spouse, widow, widower, mother, and



child of a military veteran who received a discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2).**

SECTION 43. IC 10-17-9-7, AS AMENDED BY P.L.238-2025, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) As used in this section, "eligible person" refers to either of the following:

(1) A member of the uniformed services who was discharged from the uniformed services under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2).**

(2) The spouse or surviving spouse of a member of the uniformed services who was discharged from the uniformed services under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2).**

(b) An eligible person who has a disability is eligible for admission to the home if:

(1) the eligible person is a resident of Indiana or establishes residency in Indiana not later than six (6) months after admission to the home; or

(2) in the case of an eligible person referred to in subsection (a)(1), the eligible person was a resident of Indiana when the eligible person enlisted in the uniformed services.

(c) The Indiana department of veterans' affairs shall adopt rules concerning admission to the home.

(d) In adopting rules governing the admission, maintenance, and discharge of members of the home, the Indiana department of veterans' affairs may establish a fund called the veterans' home comfort and welfare fund. The director shall deposit all money collected from the members for the cost of their care and maintenance in the fund. The director shall expend this money in any manner that adds to the comfort and welfare of the members of the institutions.

(e) A part of the veterans' home comfort and welfare fund may be withdrawn and deposited in a special fund called the veterans' home building fund. The veterans' home building fund shall be used for the construction, maintenance, remodeling, or repair of buildings of the home.

(f) Preference under this section may be given to a person who served in an Indiana military organization. Except in cases where the surviving spouse of a veteran marries another veteran, the benefits of this chapter extend only to a surviving spouse and the spouse of a veteran if the contract of marriage was entered into more than five (5) years before the date of death of the veteran. Except as otherwise



provided by law, upon the death of a person in the home, money paid to the person or due to the person from a bank, a trust company, a corporation, or an individual becomes an asset of the person's estate and shall be distributed in the manner prescribed by the probate law of the state.

SECTION 44. IC 10-17-10-1, AS AMENDED BY P.L.238-2025, SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) In order for an interested person to qualify for an allowance under this chapter:

(1) the decedent must have been an Indiana resident at the time of death and must have:

(A) received a discharge from the armed forces of the United States under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~; **IC 10-17-12-8.1(2)**; or

(B) died while serving in the armed forces of the United States; or

(2) the decedent must have been the spouse or surviving spouse of a person described in subdivision (1)(A) or (1)(B) and must have been an Indiana resident at the time of death.

(b) An interested person must file a claim for an allowance under this chapter with the board of commissioners in the county of residence of the decedent described in subsection (a). The claim must include:

(1) the fact of the service, death, and discharge if discharged from service before death; and

(2) that the body has been buried in a decent and respectable manner in a cemetery or burial ground or that the body has been cremated and the cremains have not been interred.

(c) The board of commissioners shall hear and determine the claim like other claims and, if the facts averred are found to be true, shall allow the claim in an amount set by ordinance. However, the amount of the allowance may not be more than one thousand dollars (\$1,000).

SECTION 45. IC 10-17-12-0.7, AS AMENDED BY P.L.61-2023, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 0.7. The purpose of the fund established in section 8 of this chapter is to provide short term financial assistance to ~~families of qualified service members~~. **qualifying applicants for housing, utilities, medical services, basic transportation, child care, education, employment, food, and other essential family support expenses that qualifying applicants are not otherwise able to afford.**

SECTION 46. IC 10-17-12-7.5 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 7.5: As used in this chapter, "qualified service member"



means an individual who is an Indiana resident and who:

(1) is serving on active duty in:

(A) the armed forces of the United States; or

(B) the national guard (as defined in IC 5-9-4-4); or

(2) has served in or been discharged from the armed forces of the United States or the national guard under conditions other than the following:

(A) Discharge by court martial;

(B) Acceptance of a discharge to avoid a court martial;

(C) Discharge for having committed any of the following:

(i) An offense against the security of the United States, including spying, mutiny, or treason;

(ii) An act of willful or persistent misconduct, including desertion;

(iii) A sexual or violent offense against another person, including molestation, rape, or assault;

(iv) An act described on the list of disallowable separation codes adopted under section 10.5 of this chapter.

SECTION 47. IC 10-17-12-8, AS AMENDED BY P.L.42-2020, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) The military family relief fund is established. to provide short term assistance with food, housing, utilities, medical services, basic transportation, child care, education, employment or workforce, and other essential family support expenses that have become difficult to afford for qualified service members or dependents of qualified service members.

(b) Except as provided in section 9 of this chapter, the department shall expend the money in the fund exclusively to provide grants for assistance as described in ~~subsection (a):~~ **section 0.7 of this chapter.**

(c) The department shall give priority to applications for grants for assistance from the fund to ~~qualified service members or dependents of qualified service members~~ **applicants** who have never received a grant under this chapter.

(d) Subject to the approval of the budget agency, the commission shall establish the maximum total dollar amount of grants that may be expended in a state fiscal year. Once the maximum total dollar amount of grants that may be expended in a state fiscal year is reached, no additional grants may be authorized until the start of the following state fiscal year.

(e) The director shall each year provide a report to the budget committee concerning the grant program under this chapter.

~~(f) A qualified service member or the qualified service member's~~



dependent may be eligible to receive assistance from the fund:

~~(g)~~ (f) The commission shall administer the fund.

(g) The department shall report to the commission, at least quarterly, on the status of all applications filed during the previous quarter.

SECTION 48. IC 10-17-12-8.1 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 8.1. To be eligible for a grant from the fund, an applicant must be an Indiana resident who meets at least one (1) of the following conditions:**

(1) Is serving in:

(A) the armed forces of the United States; or

(B) the national guard (as defined in IC 5-9-4-4).

(2) Has served in or been discharged from the armed forces of the United States or the national guard under conditions other than the following:

(A) Discharge by court martial.

(B) Acceptance of a discharge to avoid a court martial.

(C) Discharge for having committed any of the following:

(i) An offense against the security of the United States, including spying, mutiny, or treason.

(ii) An act of willful or persistent misconduct, including desertion.

(iii) A sexual or violent offense against another person, including molestation, rape, or assault.

(iv) An act described on the list of disallowable separation codes adopted under section 10.5 of this chapter.

(3) Is the dependent of an individual described in subdivision (1) or (2).

SECTION 49. IC 10-17-12-8.3 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 8.3. (a) The department shall make a comprehensive assessment of an applicant's financial condition and needs when making a determination regarding an award from the fund.**

(b) The department shall use the most recently available poverty guidelines set forth by the United States Department of Health and Human Services in the evaluation of an applicant's financial eligibility.

(c) The applicant's federal gross income or combined federal gross income of the applicant and the applicant's spouse shall be



1 calculated at the time of the application and be based on the two (2)
 2 most recent consecutive pay stubs. The department shall use this
 3 calculation to annualize the applicant's and the applicant's spouse's
 4 federal gross income.

5 (d) An applicant may not be eligible for assistance from the fund
 6 if the applicant's federal gross income, or the combined federal
 7 gross income of the applicant and the applicant's spouse, exceeds
 8 two (2) times the poverty guideline unless the commission approves
 9 an income waiver under subsection (e).

10 (e) The commission may waive the income threshold if the
 11 applicant requests a waiver in writing to the commission. The
 12 applicant must provide a statement letter and supporting
 13 documentation setting forth the reasons why a waiver should be
 14 granted.

15 (f) The department shall consider other income or assets
 16 available to the applicant and the applicant's spouse and determine
 17 a threshold concerning the allowable amount of available assets.
 18 The asset limits shall be posted on the department's website.

19 SECTION 50. IC 10-17-12-8.5 IS ADDED TO THE INDIANA
 20 CODE AS A NEW SECTION TO READ AS FOLLOWS
 21 [EFFECTIVE JULY 1, 2026]: Sec. 8.5. (a) An applicant must
 22 establish that the applicant has incurred a genuine hardship to be
 23 eligible to receive assistance from the fund. The hardship incurred
 24 by the applicant must:

- 25 (1) directly impact the applicant's most central and basic
- 26 living needs; and
- 27 (2) not be a consequence of the applicant's own actions or
- 28 choices, including discretionary expenditures on nonessential
- 29 goods or services.

30 (b) The department shall not make an award from the fund to
 31 cover luxury, entertainment, recreational, or other nonessential
 32 expenses.

33 SECTION 51. IC 10-17-12-8.8 IS ADDED TO THE INDIANA
 34 CODE AS A NEW SECTION TO READ AS FOLLOWS
 35 [EFFECTIVE JULY 1, 2026]: Sec. 8.8. (a) The department or
 36 commission may impose stipulations or conditions concerning an
 37 applicant seeking an award from the fund.

38 (b) If an applicant fails to satisfy any of the stipulations or
 39 conditions set forth by the department or commission, all
 40 applications submitted by the applicant shall be denied until the
 41 stipulation or condition is satisfactorily completed.

42 (c) The stipulations or conditions may include:



(1) meaningful engagement with the department of workforce development established by IC 22-4.1-2-1;

(2) completion of a financial education course provided by the department; or

(3) providing receipts from previous awards from the fund that evidence the award was used in accordance with the conditions or stipulations of the previous awards.

(d) If the department determines that the applicant made a material misrepresentation during the application process, the application shall be denied. Any future application submitted by the applicant shall be reviewed by the commission.

SECTION 52. IC 10-17-12-10, AS AMENDED BY P.L.53-2021, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) The commission shall adopt rules under IC 4-22-2 for the provision of grants under this chapter. Subject to subsection (b), the rules adopted under this section must address the following:

~~(1) Uniform need determination procedures.~~

~~(2) (1) Eligibility criteria, including income eligibility standards, asset limit eligibility standards, and other standards concerning when assistance may be provided.~~

~~(3) (2) Application procedures.~~

~~(4) Selection procedures.~~

~~(5) (3) A consideration of the extent to which an individual has used assistance available from other assistance programs before assistance may be provided to the individual from the fund.~~

~~(6) (4) Other areas in which the commission determines that rules are necessary to ensure the uniform administration of the grant program under this chapter.~~

(b) The following apply to grants awarded under this chapter:

~~(1) The income eligibility standards must be based on the federal gross income of the qualified service member and the qualified service member's spouse.~~

~~(2) An employee of the department who is otherwise eligible for a grant from the fund must submit the employee's application directly to the commission for review. The department shall have no influence in any part of the employee's application.~~

~~(3) (1) The maximum amount a qualified service member an individual may receive from the fund is two thousand five hundred dollars (\$2,500), unless a higher amount is approved by the commission.~~

~~(4) (2) The commission may consider the following in its analysis~~



of the applicant's request for assistance in excess of two thousand five hundred dollars (\$2,500):

(A) The department's eligibility determination of the applicant.

(B) Facts considered in the department's need determination.
~~review and award under 915 IAC 3-6-3 and 915 IAC 3-6-5.~~

(C) The circumstances surrounding the applicant's hardship, if applicable.

(D) Any substantive changes in the applicant's financial situation after the original application was submitted.

(E) Facts that may have been unknown or unavailable at the time of the applicant's original application for assistance.

(F) Other compelling circumstances that may justify assistance in excess of the two thousand five hundred dollar (\$2,500) threshold.

(3) An employee of the department who is otherwise eligible for a grant from the fund must submit the employee's application directly to the commission for review. The department shall have no influence in any part of the employee's application.

~~(5)~~ **(4)** The commission shall approve or deny within sixty (60) days an application for a grant filed with the commission after June 30, 2019, by an employee of the department. The commission shall return an incomplete application with a notation as to omissions. The return of an incomplete application shall be without prejudice.

(5) The department may engage with the applicant's identified vendor to verify debts or estimates and effectuate payment directly to the vendor.

SECTION 53. IC 10-17-12-12, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. The director shall establish the capability to receive donations to the fund from the public on the department's ~~Internet site.~~ **website.**

SECTION 54. IC 10-17-12-14, AS ADDED BY P.L.132-2019, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. **(a)** Except as provided in section 15 of this chapter, the department shall approve or deny an application for a grant filed with the department ~~after June 30, 2019;~~ within sixty (60) days.

(b) The department shall notify the applicant by mail or electronic mail within seven (7) days after a determination is made concerning the applicant's application.



SECTION 55. IC 10-17-12-16 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 16. (a) An applicant whose request for short term financial assistance from the fund is denied may appeal the determination by submitting an appeal letter to the department.**

(b) An applicant has thirty (30) days from the date of the postmark of the determination letter to appeal the decision.

(c) The appeal shall be conducted in accordance with IC 4-21.5-3.

SECTION 56. IC 10-17-13-10, AS AMENDED BY P.L.7-2014, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 10. (a) The commission shall manage and develop the fund and the assets of the fund.**

(b) The commission shall do the following:

(1) Carry out the duties of the commission set forth in IC 10-17-1.

(2) Establish written guidelines that specify the criteria for determining priority of applications for the purpose of providing financial assistance to ~~qualified service members or dependents of qualified service members~~ **applicants** as described under IC 10-17-12-8(c).

(3) Establish a policy to determine annually the maximum total dollar amount that may be expended for each state fiscal year from the military family relief fund established by IC 10-17-12-8.

(4) Establish a policy for the investment of the assets of the fund. In establishing a policy under this subdivision, the commission shall:

(A) establish adequate long term financial goals for the fund; and

(B) provide adequate funding for the military family relief fund established by IC 10-17-12-8.

(5) Acquire money for the fund through the solicitation of private or public donations and other revenue producing activities.

(6) Perform other tasks consistent with prudent management and development of the fund.

SECTION 57. IC 10-17-13.5-3, AS AMENDED BY P.L.238-2025, SECTION 36, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3. As used in this chapter, "veteran" means an individual residing in Indiana who:**

(1) has served in any branch of the armed forces of the United States or their reserves, in the national guard, or in the Indiana National Guard; and



(2) received a discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~.
IC 10-17-12-8.1(2).

SECTION 58. IC 10-18-1-2, AS AMENDED BY P.L.149-2016, SECTION 39, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The Indiana war memorials commission is established.

(b) The commission consists of nine (9) members. Each Indiana congressional district must be represented by at least one (1) member who is:

- (1) a resident of that congressional district;
- (2) a veteran of service in the armed forces of the United States of America in time of war;
- (3) a citizen of Indiana at the time of the service; and
- (4) appointed:
 - (A) in the manner;
 - (B) for the terms;
 - (C) to have the powers; and
 - (D) to perform the duties;
 as provided in this chapter.

(c) The commission:

- (1) as the commission and in the commission's name, may prosecute and defend suits; and
- (2) has all other duties, rights, and powers that are:
 - (A) necessary to implement this chapter; and
 - (B) not inconsistent with this chapter.

(d) The members of the commission are not liable in their individual capacity, except to the state, for any act done or omitted in connection with the performance of their duties under this chapter.

(e) A suit against the commission must be brought in a court with jurisdiction in Marion County. Notice or summons of the suit shall be served upon the president, vice president, or secretary of the commission. In a suit against the commission, it is not necessary to name the individual members of the commission as either plaintiff or defendant. Commission members may sue and be sued in the name of the Indiana war memorials commission.

(f) The commission shall

- (1) report to the governor **in a manner prescribed by the governor.** ~~through the adjutant general; and~~
- (2) ~~be under the adjutant general for administrative supervision.~~

SECTION 59. IC 14-15-2-4 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 4. (a) ~~This section does not apply to a motorboat competing~~



1 in and during a motorboat race for which a permit has been issued by
2 the department:

3 (b) A person may not operate a motorboat on Indiana water unless
4 the boat motor is equipped with:

- 5 (1) a muffler;
- 6 (2) an underwater exhaust; or
- 7 (3) other device;

8 that muffles or suppresses the sound of the exhaust.

9 SECTION 60. IC 14-15-2-5 IS REPEALED [EFFECTIVE JULY 1,
10 2026]. Sec. 5: (a) This section does not apply to a motorboat competing
11 in and during a motorboat race for which a permit has been issued by
12 the department:

13 (b) A person may not operate a motorboat on Indiana water if the
14 boat motor is equipped with any of the following:

- 15 (1) A muffler cutout;
- 16 (2) A bypass;
- 17 (3) Any device similar to a muffler cutout or bypass;

18 SECTION 61. IC 14-15-2-13 IS AMENDED TO READ AS
19 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. (a) **Except as**
20 **provided in subsection (c), this section applies to sailing vessels at**
21 **least seven (7) meters in length. the following:**

- 22 (1) Nonpowered boats including canoes and kayaks;
- 23 (2) Sailboats not more than twenty-two (22) feet in length under
- 24 sail alone;
- 25 (3) Boats powered only by electric motor on lakes restricted to
- 26 propulsion solely by oars, paddles, or electric motors;
- 27 (4) Any boat using an electric motor for positioning purposes
- 28 only;

29 (b) A boat sailing vessel described under subsection (a) must be
30 equipped with **lights as required by 33 CFR 83.25. a hand portable**
31 **lantern or flashlight not affixed or attached to any part of the boat and**
32 **capable of throwing a white light visible for a distance of at least two**
33 **(2) miles. The operator of the boat shall display the same or the white**
34 **light aft, if available, in sufficient time to avoid a collision with any**
35 **other boat that is being operated in accordance with this article.**

36 (c) A sailing vessel:

- 37 (1) less than seven (7) meters in length; or
- 38 (2) powered by oars;

39 may be equipped with lights as permitted under 33 CFR 83.25.

40 SECTION 62. IC 14-15-2-13.5 IS ADDED TO THE INDIANA
41 CODE AS A NEW SECTION TO READ AS FOLLOWS
42 [EFFECTIVE JULY 1, 2026]: Sec. 13.5. As required by the United



1 **States Coast Guard under 46 U.S.C. 4312, a vessel must be**
 2 **equipped with an engine cut-off switch.**

3 SECTION 63. IC 14-15-3-14, AS AMENDED BY P.L.69-2009,
 4 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 5 JULY 1, 2026]: Sec. 14. A person operating a boat shall observe ~~the~~
 6 ~~following all~~ traffic rules **under 33 CFR 83, if applicable. when**
 7 **applicable:**

8 (1) ~~When two (2) boats are approaching each other "head and~~
 9 ~~head", or nearly so, each boat shall bear to the right and pass the~~
 10 ~~other boat on the boat's left side.~~

11 (2) ~~When two (2) boats are approaching each other obliquely or~~
 12 ~~at right angles, the boat on the right has the right-of-way.~~
 13 ~~However, when:~~

14 (A) ~~one (1) boat is under sail or is nonmotorized, the sailboat~~
 15 ~~or nonmotorized boat has the right-of-way; and~~

16 (B) ~~two (2) boats are under sail or are nonmotorized, the boat~~
 17 ~~on the right has the right-of-way.~~

18 (3) ~~A boat operated on a river or a channel shall bear to the right.~~

19 (4) ~~A boat may overtake and pass another boat on either side if~~
 20 ~~the passing can be done with safety and within the assured clear~~
 21 ~~distance ahead, but the boat overtaken has the right-of-way.~~

22 (5) ~~A boat leaving a dock, a pier, a wharf, or the shore has the~~
 23 ~~right-of-way over all boats approaching the dock, pier, wharf, or~~
 24 ~~shore.~~

25 SECTION 64. IC 14-15-2-15, AS AMENDED BY P.L.127-2022,
 26 SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 27 JULY 1, 2026]: Sec. 15. (a) A person who violates section 1, 2, 3, 4, 5,
 28 6, 7(b), 9, 10, or 13 of this chapter commits a Class C infraction.

29 (b) A person who violates section 7(c) or 8 of this chapter commits
 30 a Class A infraction. Notwithstanding IC 34-28-5-4(a), a judgment of
 31 at least one thousand dollars (\$1,000) shall be imposed for each Class
 32 A infraction committed in violation of section 7(c) or 8 of this chapter.

33 SECTION 65. IC 16-33-4-7, AS AMENDED BY P.L.238-2025,
 34 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 35 JULY 1, 2026]: Sec. 7. (a) Except as provided in subsection (b), the
 36 superintendent of the home shall be appointed in the manner prescribed
 37 by law and must meet all of the following conditions:

38 (1) Be a teacher licensed by the state or have at least a
 39 baccalaureate degree from an accredited college or university in
 40 a field related to education or child growth and development.

41 (2) Have experience working with children.

42 (3) At the time of appointment, be a resident and citizen of



1 Indiana.

2 (4) Have other qualifications as required by the state health
3 commissioner.

4 (b) When at least two (2) candidates meet the conditions listed in
5 subsection (a), the state health commissioner shall give preference to
6 individuals who have been discharged from the armed forces of the
7 United States under conditions other than conditions set forth in
8 ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)** in appointing a candidate to the
9 position of superintendent of the home.

10 SECTION 66. IC 20-20-7-3, AS AMENDED BY P.L.238-2025,
11 SECTION 54, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
12 JULY 1, 2026]: Sec. 3. As used in this chapter, "eligible veteran" refers
13 to an individual who has the following qualifications:

14 (1) Served as a member of the armed forces of the United States
15 at any time during at least one (1) of the following periods:

16 (A) Beginning April 6, 1917, and ending November 11, 1918
17 (World War I).

18 (B) Beginning December 7, 1941, and ending December 31,
19 1946 (World War II).

20 (C) Beginning June 27, 1950, and ending January 31, 1955
21 (Korean Conflict).

22 (D) Beginning August 5, 1964, and ending May 7, 1975
23 (Vietnam Conflict).

24 (2) Before the military service described in subdivision (1):

25 (A) attended a public or nonpublic high school in Indiana; and

26 (B) was a student in good standing at the high school
27 described in clause (A), to the satisfaction of the department
28 of veterans' affairs.

29 (3) Did not graduate or receive a diploma because of leaving the
30 high school described in subdivision (2) for the military service
31 described in subdivision (1).

32 (4) Was discharged from the armed forces of the United States
33 under conditions other than conditions set forth in
34 ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)**.

35 SECTION 67. IC 20-20-7-7, AS AMENDED BY P.L.238-2025,
36 SECTION 55, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
37 JULY 1, 2026]: Sec. 7. (a) The department and the department of
38 veterans' affairs shall jointly design a form for the application for
39 issuance of a diploma under the program.

40 (b) The application form must require at least the following
41 information about an eligible veteran:

42 (1) Personal identification information.



(2) Military service information, including a copy of the eligible veteran's discharge from military service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~.

IC 10-17-12-8.1(2).

(3) High school information, including the following:

(A) Name and address, including county, of the last high school attended.

(B) Whether the high school was a public or nonpublic school.

(C) Years attended.

(D) Year of leaving high school to begin military service.

(E) Year in which the veteran would have graduated if the veteran had not left high school to begin military service.

(4) If the high school attended was a public school, whether the veteran prefers receiving a diploma issued by:

(A) the state board; or

(B) the governing body of the school corporation governing the high school.

SECTION 68. IC 21-12-13-2, AS AMENDED BY P.L.11-2023, SECTION 71, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) This section applies to the following scholarship and fee remission statutes:

(1) IC 21-12-3.

(2) IC 21-12-4.

(3) IC 21-12-6.

(4) IC 21-13-2.

(5) IC 21-13-7.

(6) IC 21-13-8.

(7) IC 21-13-4.

(8) IC 21-14-5.

(9) IC 21-12-16.

(b) **This subsection does not apply to a grant or reduction in fees under IC 21-13-4.** Except as provided in subsection ~~(e)~~; **(d)**, and except for a scholarship granted under IC 21-13-8 to an individual described in IC 21-13-8-1(b)(2)(B), a grant or reduction in tuition or fees, including all renewals and extensions, under any of the laws listed in subsection (a) may not exceed the number of terms that constitutes

~~(1) except as provided in subdivision (2);~~ four (4) undergraduate academic years, as determined by the commission, ~~or~~

~~(2) for purposes of IC 21-13-4, six (6) academic years as determined by the commission;~~

and must be used within eight (8) years after the date the individual first applies and becomes eligible for benefits under the applicable law.



(c) A grant or reduction in tuition or fees, including all renewals and extensions, under IC 21-13-4 may not exceed the number of terms that constitutes six (6) academic years as determined by the commission.

(e) (d) The commission may, subject to the availability of funds, extend eligibility under subsection (b) for a recipient who used a grant or reduction in tuition or fees under any of the statutes listed in subsection (a) at a postsecondary educational institution that closed. The extension of eligibility may not exceed the number of terms used by the recipient at the postsecondary educational institution that closed.

SECTION 69. IC 22-4.1-4-3.3, AS AMENDED BY P.L.238-2025, SECTION 61, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.3. (a) As used in this section, "veteran" means:

(1) a Hoosier veteran (as defined in IC 1-1-4-5(b)); or

(2) an individual who satisfies the following:

(A) The individual is a resident of Indiana.

(B) The individual has previously served on active duty in any branch of the armed forces of the United States or their reserves, in the National Guard, or in the Indiana National Guard.

(C) The individual received a discharge from service under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~ IC 10-17-12-8.1(2).

(b) Unless otherwise provided by federal law, the department shall give a veteran or the spouse of a veteran priority for placement in any federal or state employment or training program administered by the department if the veteran or the veteran's spouse:

(1) submits documentation satisfactory to the department establishing the veteran's honorable discharge from service; and

(2) meets the eligibility requirements for the program.

SECTION 70. IC 25-8-12.1-12, AS AMENDED BY P.L.238-2025, SECTION 75, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. A person who:

(1) enters active military service of the United States or of this state:

(A) in time of war or an emergency;

(B) for or during a period of training; or

(C) in connection with or under the operation of a system of selective service; and

(2) at the time of entry holds a valid license as a registered barber; shall be granted a similar certificate of registration or license upon presenting to the board a discharge from military service under



conditions other than conditions set forth in ~~IC 10-17-12-7.5(2);~~
IC 10-17-12-8.1(2), dated not more than six (6) months before the time
of the presentation. The similar certificate or license shall be granted
by the board upon payment of a fee established by the board.

SECTION 71. IC 25-10-1-7, AS AMENDED BY P.L.238-2025,
SECTION 76, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 7. Any applicant for a license to practice
chiropractic who is a graduate of a legally incorporated chiropractic
school, institution or college, and who can produce satisfactory
evidence to the board that the:

(1) applicant's chiropractic education was interrupted by reason
of the applicant's induction or enlistment into the active armed
forces of the United States; and

(2) applicant received a discharge from the armed forces under
conditions other than conditions set forth in ~~IC 10-17-12-7.5(2);~~
IC 10-17-12-8.1(2);

is entitled to have the applicant's date of graduation determined as if
the applicant had completed the applicant's course of study in
chiropractic without the interruption.

SECTION 72. IC 25-25-2-1, AS AMENDED BY P.L.238-2025,
SECTION 77, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 1. (a) This section applies to:

(1) any veteran described in IC 10-17-5-2 or IC 10-17-5-1 (before
their repeal); or

(2) any other veteran to whom this chapter applies because of the
provisions of any other statute;

who received a discharge from military service under conditions other
than conditions set forth in ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)**
from such service issued by the proper authorities. Such a person shall
be entitled to a license to vend, hawk, and peddle goods, wares, fruits,
and merchandise in any county, city, or town in Indiana without the
payment of any fee for the license. Upon the presentation of the
person's certificate and papers of discharge, properly executed, to the
auditor of any county and proving the person's identity as the person
named in the person's certificate of discharge, the auditor shall issue to
the former soldier or sailor a free license to vend, hawk, and peddle
goods, wares, fruits, and merchandise in the county and in all cities and
towns in the county. A fee may not be charged to the holder of the
license by the auditor, by the authorities of any city or town in the
county, or by any other officer. The license shall be full and complete
authority to vend, hawk, and peddle without the payment of any sum of
money.



(b) A person who acquires a license under this section is subject to all county, city, or town regulations and ordinances concerning vendors, hawkers, or peddlers, except for those provisions requiring payment of money for obtaining a license.

SECTION 73. IC 25-37-1-14, AS AMENDED BY P.L.238-2025, SECTION 79, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) This section applies to a county having a consolidated city.

(b) A veteran who received a discharge from the armed forces of the United States under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)** is exempt from the payment of a fee for a transient merchant license issued under this chapter by a municipality located wholly or partially within the county.

(c) Upon the presentation of the veteran's certificate and papers of discharge and proof of the veteran's identity, the official designated by the municipality shall issue a transient merchant license to the veteran. A person licensed under this section shall comply with all ordinances of the county or municipality governing transient merchants.

SECTION 74. IC 34-13-3-3, AS AMENDED BY P.L.186-2025, SECTION 182, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) A governmental entity or an employee acting within the scope of the employee's employment is not liable if a loss results from the following:

- (1) The natural condition of unimproved property.
- (2) The condition of a reservoir, dam, canal, conduit, drain, or similar structure when used by a person for a purpose that is not foreseeable.
- (3) The temporary condition of a public thoroughfare or extreme sport area that results from weather.
- (4) The condition of an unpaved road, trail, or footpath, the purpose of which is to provide access to a recreation or scenic area.
- (5) The design, construction, control, operation, or normal condition of an extreme sport area, if all entrances to the extreme sport area are marked with:
 - (A) a set of rules governing the use of the extreme sport area;
 - (B) a warning concerning the hazards and dangers associated with the use of the extreme sport area; and
 - (C) a statement that the extreme sport area may be used only by persons operating extreme sport equipment.

This subdivision shall not be construed to relieve a governmental entity from liability for the continuing duty to maintain extreme



sports areas in a reasonably safe condition.

(6) The initiation of a judicial or an administrative proceeding.

(7) The performance of a discretionary function; however, the provision of medical or optical care as provided in IC 34-6-2.1-54 shall be considered as a ministerial act.

(8) The adoption and enforcement of or failure to adopt or enforce:

(A) a law (including rules and regulations); or

(B) in the case of a public school or charter school, a policy; unless the act of enforcement constitutes false arrest or false imprisonment.

(9) An act or omission performed in good faith and without malice under the apparent authority of a statute which is invalid if the employee would not have been liable had the statute been valid.

(10) The act or omission of anyone other than the governmental entity or the governmental entity's employee.

(11) The issuance, denial, suspension, or revocation of, or failure or refusal to issue, deny, suspend, or revoke any permit, license, certificate, approval, order, or similar authorization, where the authority is discretionary under the law.

(12) Failure to make an inspection, or making an inadequate or negligent inspection, of any property, other than the property of a governmental entity, to determine whether the property complied with or violates any law or contains a hazard to health or safety.

(13) Entry upon any property where the entry is expressly or impliedly authorized by law.

(14) Misrepresentation if unintentional.

(15) Theft by another person of money in the employee's official custody, unless the loss was sustained because of the employee's own negligent or wrongful act or omission.

(16) Injury to the property of a person under the jurisdiction and control of the department of correction if the person has not exhausted the administrative remedies and procedures provided by section 7 of this chapter.

(17) Injury to the person or property of a person under supervision of a governmental entity and who is:

(A) on probation;

(B) assigned to an alcohol and drug services program under IC 12-23, a minimum security release program under IC 11-10-8, a pretrial conditional release program under



- 1 IC 35-33-8, or a community corrections program under
- 2 IC 11-12; or
- 3 (C) subject to a court order requiring the person to be escorted
- 4 by a county police officer while on or in a government
- 5 building (as defined in IC 36-9-13-3) owned by a county
- 6 building authority under IC 36-9-13, unless the injury is the
- 7 result of an act or omission amounting to:
- 8 (i) gross negligence;
- 9 (ii) willful or wanton misconduct; or
- 10 (iii) intentional misconduct.
- 11 (18) Design of a highway (as defined in IC 9-13-2-73), toll road
- 12 project (as defined in IC 8-15-2-4(4)), tollway (as defined in
- 13 IC 8-15-3-7), or project (as defined in IC 8-15.7-2-14) if the
- 14 claimed loss occurs at least twenty (20) years after the public
- 15 highway, toll road project, tollway, or project was designed or
- 16 substantially redesigned; except that this subdivision shall not be
- 17 construed to relieve a responsible governmental entity from the
- 18 continuing duty to provide and maintain public highways in a
- 19 reasonably safe condition.
- 20 (19) Development, adoption, implementation, operation,
- 21 maintenance, or use of an enhanced emergency communication
- 22 system.
- 23 (20) Injury to a student or a student's property by an employee of
- 24 a school corporation if the employee is acting reasonably under a:
- 25 (A) discipline policy adopted under IC 20-33-8-12; or
- 26 (B) restraint and seclusion plan adopted under IC 20-20-40-14.
- 27 (21) An act or omission performed in good faith under the
- 28 apparent authority of a court order described in IC 35-46-1-15.1
- 29 or IC 35-46-1-15.3 that is invalid, including an arrest or
- 30 imprisonment related to the enforcement of the court order, if the
- 31 governmental entity or employee would not have been liable had
- 32 the court order been valid.
- 33 (22) An act taken to investigate or remediate hazardous
- 34 substances, petroleum, or other pollutants associated with a
- 35 brownfield (as defined in IC 13-11-2-19.3) unless:
- 36 (A) the loss is a result of reckless conduct; or
- 37 (B) the governmental entity was responsible for the initial
- 38 placement of the hazardous substances, petroleum, or other
- 39 pollutants on the brownfield.
- 40 (23) The operation of an off-road vehicle (as defined in
- 41 IC 14-8-2-185) by a nongovernmental employee, or by a
- 42 governmental employee not acting within the scope of the



employment of the employee, on a public highway in a county road system outside the corporate limits of a city or town, unless the loss is the result of an act or omission amounting to:

- (A) gross negligence;
- (B) willful or wanton misconduct; or
- (C) intentional misconduct.

This subdivision shall not be construed to relieve a governmental entity from liability for the continuing duty to maintain highways in a reasonably safe condition for the operation of motor vehicles licensed by the bureau of motor vehicles for operation on public highways.

(24) Any act or omission rendered in connection with a request, investigation, assessment, or opinion provided under IC 36-9-28.7.

(25) Any act or omission rendered in connection with an Indiana civilian cyber corps program deployment as provided under IC 10-16-22.

(b) This subsection applies to a cause of action that accrues during a period of a state disaster emergency declared under IC 10-14-3-12 to respond to COVID-19, if the state of disaster emergency was declared after February 29, 2020, and before April 1, 2022. A governmental entity or an employee acting within the scope of the employee's employment is not liable for an act or omission arising from COVID-19 unless the act or omission constitutes gross negligence, willful or wanton misconduct, or intentional misrepresentation. If a claim described in this subsection is:

(1) a claim for injury or death resulting from medical malpractice; and

(2) not barred by the immunity provided under this subsection; the claimant is required to comply with all of the provisions of IC 34-18 (medical malpractice act).

SECTION 75. IC 34-30-2.1-125.2 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 125.2. IC 10-16-22-3 (Concerning Indiana civilian cyber corps volunteers or civilian cyber corps advisers).**

SECTION 76. IC 34-30-2.1-125.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 125.3. IC 10-16-22-4 (Concerning Indiana civilian cyber corps volunteers or civilian cyber corps advisers).**

SECTION 77. IC 34-30-8-1 IS AMENDED TO READ AS



FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. If a person or entity, other than a person or entity listed in subdivisions (1) through (10), enters into a written agreement to use space in an armory for a function, the following persons and entities are not liable for civil damages for any property damage or bodily injury resulting from the serving of food or beverages at the function held at the armory:

- (1) The state.
- (2) The Indiana army national guard.
- (3) The Indiana air national guard.
- (4) The army national guard of the United States.
- (5) The air national guard of the United States.
- (6) The adjutant general appointed under IC 10-16-2-6.
- (7) The ~~assistant adjutants general~~ **additional general officers** appointed under IC 10-16-2-7.
- (8) The officers and enlisted members of the Indiana army national guard and the Indiana air national guard.
- (9) The state armory board appointed under IC 10-16-3-1 and the members of that board.
- (10) The local armory board appointed under IC 10-16-4-1 for the armory and the members of that board.

SECTION 78. IC 35-31.5-2-185, AS AMENDED BY P.L.238-2025, SECTION 85, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 185. (a) "Law enforcement officer" means:

- (1) a police officer (including a tribal police officer, a correctional police officer, and a hospital police officer employed by a hospital police department established under IC 16-18-4), sheriff, constable, marshal, prosecuting attorney, special prosecuting attorney, special deputy prosecuting attorney, the securities commissioner, the state fire marshal, the executive director of the department of homeland security, or the inspector general;
- (2) a deputy of any of those persons;
- (3) an investigator for a prosecuting attorney or for the inspector general;
- (4) a conservation officer;
- (5) an enforcement officer of the alcohol and tobacco commission;
- (6) an enforcement officer of the securities division of the office of the secretary of state;
- (7) a gaming agent employed under IC 4-33-4.5 or a gaming control officer employed by the gaming control division under IC 4-33-20; ~~or~~
- (8) a fire investigator of the department of homeland security; **or**



1 **(9) a member in the military police force of the Indiana**
 2 **National Guard while exercising police powers in accordance**
 3 **with IC 10-16-23-3.**

4 (b) "Law enforcement officer", for purposes of IC 35-42-2-1,
 5 includes an alcoholic beverage enforcement officer, as set forth in
 6 IC 35-42-2-1.

7 (c) "Law enforcement officer", for purposes of IC 35-45-15,
 8 includes a federal enforcement officer, as set forth in IC 35-45-15-3.

9 (d) "Law enforcement officer", for purposes of IC 35-44.1-3-1 and
 10 IC 35-44.1-3-2, includes a school resource officer (as defined in
 11 IC 20-26-18.2-1) and a school corporation police officer appointed
 12 under IC 20-26-16.

13 (e) "Law enforcement officer", for purposes of IC 35-40.5, has the
 14 meaning set forth in IC 35-40.5-1-1.

15 SECTION 79. IC 36-1-8.5-4, AS AMENDED BY P.L.122-2023,
 16 SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 17 JULY 1, 2026]: Sec. 4. As used in this chapter, "law enforcement
 18 officer" means an individual who is employed or was formerly
 19 employed as:

20 (1) a police officer (including a tribal police officer, a correctional
 21 police officer, and a hospital police officer employed by a hospital
 22 police department established under IC 16-18-4), sheriff,
 23 constable, marshal, prosecuting attorney, special prosecuting
 24 attorney, special deputy prosecuting attorney, the securities
 25 commissioner, or the inspector general;

26 (2) a deputy of any of the persons specified in subdivision (1);

27 (3) an investigator for a prosecuting attorney or for the inspector
 28 general;

29 (4) a conservation officer;

30 (5) an enforcement officer of the alcohol and tobacco
 31 commission; ~~or~~

32 (6) an enforcement officer of the securities division of the office
 33 of the secretary of state; **or**

34 **(7) a member in the military police force of the Indiana**
 35 **National Guard while exercising police powers in accordance**
 36 **with IC 10-16-23-3.**

37 SECTION 80. IC 36-8-2.1-3.1, AS AMENDED BY P.L.64-2022,
 38 SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 39 JULY 1, 2026]: Sec. 3.1. As used in this chapter, "public safety officer"
 40 means the following:

41 (1) A police officer who is a full-time, paid, nonprobationary
 42 member of a police department. The term does not include a:



1 (A) member in the military police force of the Indiana
 2 National Guard under IC 10-16-23;

3 (B) tribal police officer; or

4 (C) a member of the state police department.

5 (2) A firefighter who is a full-time, paid, nonprobationary member
 6 of a fire department. The term does not include a volunteer
 7 firefighter.

8 SECTION 81. IC 36-8-4-10, AS AMENDED BY P.L.238-2025,
 9 SECTION 92, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 10 JULY 1, 2026]: Sec. 10. (a) Subject to subsection (c), the board or
 11 persons having the authority to employ members of the fire or police
 12 department shall give a preference for employment according to the
 13 following priority:

14 (1) A war veteran who has been discharged from the armed forces
 15 of the United States under conditions other than conditions set
 16 forth in ~~IC 10-17-12-7.5(2)~~; **IC 10-17-12-8.1(2)**.

17 (2) A person whose mother or father was a:

18 (A) firefighter of a unit;

19 (B) municipal police officer; or

20 (C) county police officer;

21 who died in the line of duty (as defined in IC 5-10-10-2).

22 (b) Subject to subsection (c), the board or person having the
 23 authority to employ members of a fire or police department may give
 24 a preference for employment to any of the following:

25 (1) A police officer or firefighter laid off by another city under
 26 section 11 of this chapter.

27 (2) A county police officer laid off by a sheriff's department under
 28 IC 36-8-10-11.1.

29 (3) A person who:

30 (A) was employed full-time or part-time by a township to
 31 provide fire protection and emergency services; and

32 (B) has been laid off by the township.

33 (c) A person described in subsection (a) or (b) may not receive a
 34 preference for employment unless the person:

35 (1) applies; and

36 (2) meets all employment requirements prescribed:

37 (A) by law, including physical and age requirements; and

38 (B) by the fire or police department.

39 SECTION 82. IC 36-8-4.7-5, AS AMENDED BY P.L.238-2025,
 40 SECTION 94, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 41 JULY 1, 2026]: Sec. 5. (a) Notwithstanding any contrary law, an
 42 appointing authority shall waive any age restriction for a person not



more than forty (40) years and six (6) months of age that applies to the appointment and hiring of an individual as:

(1) a member of the police department; or

(2) a member of the fire department;

if the individual meets the requirements of subsection (b).

(b) An individual who meets all the following requirements is entitled to the waiver described in subsection (a):

(1) On the date the individual applies to be appointed and hired as:

(A) a member of the police department; or

(B) a member of the fire department;

the individual is a veteran who has completed at least twenty (20) years of military service.

(2) The individual received or is eligible to receive a discharge from the armed forces of the United States under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2).**

(3) The individual meets all other requirements for appointment and hiring as:

(A) a member of the police department; or

(B) a member of the fire department;
including all physical requirements.

(c) An individual who is entitled to the waiver described in subsection (a) is eligible to become a member of the 1977 fund.

SECTION 83. IC 36-8-5-8, AS AMENDED BY P.L.238-2025, SECTION 95, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) A police officer or firefighter desiring to return to service in the police or fire department shall report to the person responsible for regulating and employing members of the department. This action must be taken within sixty (60) days after a discharge under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~ **IC 10-17-12-8.1(2)** from military service or government war work.

(b) Within fifteen (15) days after the police officer or firefighter reports to the department, the police officer or firefighter shall be placed on duty at the rank held at the time of entering military service or government war work.

(c) If a member of the police or fire department is refused a proper assignment under subsection (b), the member of the police or fire department may file an action in the circuit court, superior court, or probate court of the county in the manner prescribed by IC 36-8-3-4.

SECTION 84. IC 36-8-10-10.4, AS AMENDED BY P.L.238-2025,



SECTION 96, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10.4. (a) Subject to subsection (c), the board shall give a preference for employment according to the following priority:

(1) A war veteran who has been discharged from the armed forces of the United States under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2)**.

(2) A person whose mother or father was a:

(A) firefighter of a unit;

(B) municipal police officer; or

(C) county police officer;

who died in the line of duty (as defined in IC 5-10-10-2).

(b) Subject to subsection (c), the board may give a preference for employment to any of the following:

(1) A member of another department laid off under section 11.1 of this chapter.

(2) A police officer laid off by a city under IC 36-8-4-11.

(c) A person described in subsection (a) or (b) may not receive a preference for employment unless the person:

(1) applies; and

(2) meets all employment requirements prescribed:

(A) by law, including physical and age requirements; and

(B) by the department.

SECTION 85. IC 36-8-13-3, AS AMENDED BY P.L.238-2025, SECTION 102, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) The executive of a township, with the approval of the legislative body, may do the following:

(1) Purchase firefighting and emergency services apparatus and equipment for the township, provide for the housing, care, maintenance, operation, and use of the apparatus and equipment to provide services within the township but outside the corporate boundaries of municipalities, and employ full-time or part-time personnel to operate the apparatus and equipment and to provide services in that area. Preference in employment under this section shall be given according to the following priority:

(A) A war veteran who has been discharged from the armed forces of the United States under conditions other than conditions set forth in ~~IC 10-17-12-7.5(2)~~. **IC 10-17-12-8.1(2)**.

(B) A person whose mother or father was a:

(i) firefighter of a unit;

(ii) municipal police officer; or

(iii) county police officer;

who died in the line of duty (as defined in IC 5-10-10-2).



1 The executive of a township may give a preference for
2 employment under this section to a person who was employed
3 full-time or part-time by another township to provide fire
4 protection and emergency services and has been laid off by the
5 township. The executive of a township may also give a preference
6 for employment to a firefighter laid off by a city under
7 IC 36-8-4-11. A person described in this subdivision may not
8 receive a preference for employment unless the person applies for
9 employment and meets all employment requirements prescribed
10 by law, including physical and age requirements, and all
11 employment requirements prescribed by the fire department.

12 (2) Contract with a municipality in the township or in a
13 contiguous township that maintains adequate firefighting or
14 emergency services apparatus and equipment to provide fire
15 protection or emergency services for the township in accordance
16 with IC 36-1-7.

17 (3) Cooperate with a municipality in the township or in a
18 contiguous township in the purchase, maintenance, and upkeep of
19 firefighting or emergency services apparatus and equipment for
20 use in the municipality and township in accordance with
21 IC 36-1-7.

22 (4) Contract with a volunteer fire department that has been
23 organized to fight fires in the township for the use and operation
24 of firefighting apparatus and equipment that has been purchased
25 by the township in order to save the private and public property
26 of the township from destruction by fire, including use of the
27 apparatus and equipment in an adjoining township by the
28 department if the department has made a contract with the
29 executive of the adjoining township for the furnishing of
30 firefighting service within the township.

31 (5) Contract with a volunteer fire department that maintains
32 adequate firefighting service in accordance with IC 36-8-12.

33 (6) Use money in the township's rainy day fund to pay costs
34 attributable to providing fire protection or emergency services
35 under this chapter.

36 (b) This subsection applies only to townships that provide fire
37 protection or emergency services or both under subsection (a)(1) and
38 to municipalities that have some part of the municipal territory within
39 a township and do not have a full-time paid fire department. A
40 township may provide fire protection or emergency services or both
41 without contracts inside the corporate boundaries of the municipalities
42 if before July 1 of a year the following occur:



(1) The legislative body of the municipality adopts an ordinance to have the township provide the services without a contract.

(2) The township legislative body passes a resolution approving the township's provision of the services without contracts to the municipality.

In a township providing services to a municipality under this section, the legislative body of either the township or a municipality in the township may opt out of participation under this subsection by adopting an ordinance or a resolution, respectively, before July 1 of a year.

(c) This subsection applies only to a township that:

(1) is located in a county containing a consolidated city;

(2) has at least three (3) included towns (as defined in IC 36-3-1-7) that have all municipal territory completely within the township on January 1, 1996; and

(3) provides fire protection or emergency services, or both, under subsection (a)(1);

and to included towns (as defined in IC 36-3-1-7) that have all the included town's municipal territory completely within the township. A township may provide fire protection or emergency services, or both, without contracts inside the corporate boundaries of the municipalities if before August 1 of the year preceding the first calendar year to which this subsection applies the township legislative body passes a resolution approving the township's provision of the services without contracts to the municipality. The resolution must identify the included towns to which the resolution applies. In a township providing services to a municipality under this section, the legislative body of the township may opt out of participation under this subsection by adopting a resolution before July 1 of a year. A copy of a resolution adopted under this subsection shall be submitted to the executive of each included town covered by the resolution, the county auditor, and the department of local government finance.

